



City Council Meeting

February 2, 2026

6:00 p.m.

Cadillac Municipal Complex

Council Chambers

200 N. Lake St.

Cadillac, MI 49601



February 2, 2026 City Council Meeting Agenda
6 p.m. at City Hall - 200 N. Lake St. – Cadillac, MI 49601

We are all accountable

CALL TO ORDER
PLEDGE OF ALLEGIANCE
ROLL CALL

I. APPROVAL OF AGENDA

II. PUBLIC COMMENTS

This opportunity for public comment provides the public with a chance to make a statement regarding any subject matter. Public comment is not an opportunity to necessarily ask questions or converse with City Staff, Council Members or other meeting attendees. Contact information for Council and staff is available on our website, www.cadillac-mi.net, or can be obtained by calling (231) 775-0181. Comment time is limited to 3-minutes, and unused time may not be yielded back or given to someone else to use.

III. COMMUNITY SPOTLIGHT

A. Lifesaving Awards

IV. PFAS UPDATE

V. CONSENT AGENDA

All items listed on the consent agenda are considered routine and will be enacted by one motion with roll call vote. There will be no separate discussion of these items unless a Council Member so requests it, in which event the items will be removed from the consent agenda and discussed separately.

A. Minutes from the regular meeting held on January 20, 2026
Support Document V-A

B. Minutes from the closed session held on January 20, 2026

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VI. PUBLIC HEARINGS

- A. Public hearing to consider adoption of Ordinance to Amend the Zoning Ordinance to Conditionally Rezone Property (407 E. Chapin Street).
Support Document VI-A
- B. Public hearing to consider adoption of Ordinance to Amend the Zoning Ordinance to Conditionally Rezone Property (620 Arthur Street).
Support Document VI-B

VII. COMMUNICATIONS

- A. Downtown Sidewalk Cafés
Support Document VII-A

VIII. APPOINTMENTS

- A. Recommendation regarding reappointment to the Planning Commission.
Support Document VIII-A
- B. Recommendation regarding reappointment to the Brownfield Redevelopment Authority.
Support Document VIII-B
- C. Recommendation regarding reappointment to the Cadillac Historic Districts Commission.
Support Document VIII-C
- D. Recommendation regarding reappointment to the Downtown Development Authority.
Support Document VIII-D
- E. Recommendation regarding reappointment to the Election Commission.
Support Document VIII-E

IX. CITY MANAGER'S REPORT

- A. Recommendation regarding amendments to the LDFA Bylaws.
Support Document IX-A
- B. Recommendation regarding Clean Water State Revolving Project Plan and Funding Assistance Proposal.
Support Document IX-B
- C. Set Public hearing for Community Development Block Grant.
Support Document IX-C

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D. Hardship (Poverty) Exemption Policy
Support Document IX-D

E. Setting of Budget Related Work Sessions
- Goals & Capital Improvement Program Review on March 16, 2026 at 4:15 p.m.
- Fiscal Year 2027 Budget Review on April 6, 2026 at 4:15 p.m.

F. Winter Operations Update

X. ADOPTION OF ORDINANCES AND RESOLUTIONS

A. Adopt Local Governing Body Resolution for Charitable Gaming License for the
Viking Softball Association.
Support Document X-A

XI. MINUTES AND REPORTS OF BOARDS AND COMMISSIONS

A. Planning Commission
Support Document XI-A

B. Zoning Board of Appeals
Support Document XI-B

XII. PUBLIC COMMENTS

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XIII. GOOD OF THE ORDER

XIV. ADJOURNMENT

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Core Values (R.I.T.E.)

Respect

Integrity

Trust

Excellence

Guiding Behaviors

We support each other in serving our community

We communicate openly, honestly, respectfully, and directly

We are fully present

We are all accountable

We trust and assume goodness in intentions

We are continuous learners

CITY COUNCIL MEETING MINUTES

January 20, 2026

Cadillac City Hall - 200 N. Lake St. - Cadillac, Michigan 49601

CALL TO ORDER

The meeting was called to order by Mayor Powell at approximately 6:00 pm.

PLEDGE OF ALLEGIANCE

OATH OF OFFICE

The City Clerk administered the Oath of Office to Council Member Scott Hopkins (Ward Two) and Council Member Ruthann French (Ward Four). Their terms will expire on December 31, 2029.

The City Clerk administered the Oath of Office to Mayor David C. Powell. His term will expire on December 31, 2027.

Mayor Powell thanked his friends and family for supporting him through this ambitious idea of running for Mayor. He thanked the citizens for placing their trust in him and electing him as their Mayor. He stated he is deeply grateful for the confidence you have shown and noted he is honored by the opportunity to serve this community we care so much about. He noted Cadillac is a remarkable place because of its people and he is committed to work to reflect your values, your hopes, and your belief in what our City can be. He thanked everyone for the privilege and for the faith they have placed in his leadership.

ROLL CALL

Council Present: Elenbaas, Hopkins, Engels, French, Mayor Powell

Council Absent: None

Staff Present: Peccia, Roberts, Dietlin, Waldo, Ottjepka, Owens, Homier (via Zoom), Wasson

APPROVAL OF AGENDA

2026-001 Approve agenda as presented.

Motion was made by Elenbaas and supported by Hopkins to approve the agenda as presented.

Motion unanimously approved.

PUBLIC COMMENTS

Konrad Isch stated that Ruthann French violated campaign finance law and committed potentially other violations of law during her campaign to run for City Council and he distributed a packet of information to Council. He expressed concerns regarding the performance of the City Manager.

Paula Meyers stated Ruthann is the epitome of integrity, honesty, hard work, and community dedication. She expressed support for the City Manager and noted she thinks we have an incredibly dedicated staff and public servants.

Jaime Stickels stated she lives on a dead-end alley off of Smith Street. She expressed concerns about plowing that part of the alley because that is her only access to the road.

Carla Moore expressed concerns about the person operating the Farmers Market. She suggested changes to the contract or agreement and noted that there should be signage that states that The Market is owned by the City of Cadillac.

Stephen King expressed concerns about the agenda item “City Manager Adjustment”. He stated he hopes that the item is tabled and asked Council to consider establishing a citizens advisory committee to vet the requests and what salary asks are reasonable or not reasonable.

John Wallace noted he worked for the City for 10 years as the Community Development Director and the Downtown Development Director. He expressed support for the request by the City Manager for a wage adjustment.

Martin Dubravec stated he supports Mr. King’s recommendation for tabling the City Manager’s salary adjustment and for establishing a citizens advisory committee. He recommended that the agenda items be formulated through the Mayor with the help of the City Manager. He expressed concerns about the lack of lighting on South Mitchell Street,

Art Stevens questioned why the City Manager adjustment isn’t being done in conjunction with an evaluation. He expressed concerns about the timing of this agenda item.

Ryan Spalding questioned the timing of the agenda item “City Manager Adjustment.”. He noted some of the wage comparisons provided don’t make sense and stated the item should be tabled

Gwen Dubravec stated she believes it is inappropriate bringing up the “City Manager Adjustment” at the first meeting of the year. She noted this past summer the sidewalk cracks on Mitchell Street were full of weeds. She stated you can’t be giving a raise when we apparently can’t afford or get the basic job done of keeping the town looking neat and tidy.

Randy Lindell discussed the importance of plowing the sidewalks.

Linda Durant stated she is happy with the Council, the new Mayor, and the City Manager.

PFAS UPDATE

Peccia noted as was announced last week we were informed through Congressman Moolenaar’s office that an additional \$1.46 million has been secured through his efforts with the United States House of Representatives. He stated these funds will be joined with the \$8.2 million that the State of Michigan has indicated that will be awarded. He noted we cannot initiate the process of extending any of our water infrastructure until we have the formal grant agreements in place, but we expect that we’ll be able to break ground in 2026. He stated we anticipate that there should be more than adequate funds to do everything that we have been talking about including connecting people that are on private wells to the public infrastructure, building the public infrastructure out to where it doesn’t exist, installing private service lines, and even closing down private wells. He noted we do believe that there’s also going to be available funds to help some of the surrounding townships with properties immediately adjacent to the City.

CONSENT AGENDA

2026-002 Approve consent agenda as presented.

Motion was made by French and supported by Elenbaas to approve the consent agenda as presented.

Motion unanimously approved.

APPOINTMENTS

A. Election of Mayor Pro Tem

Council Member Engels received four (4) votes and Council Member French received one (1) vote. Council Member Engels will serve as Mayor Pro Tem for a term to coincide with the Mayor's two-year term of office.

B. Recommendation regarding appointment to the Cadillac Housing Commission.

2026-003 Approve appointment to the Cadillac Housing Commission.

Motion was made by Elenbaas and supported by Hopkins to approve the appointment of Amy Kotulski to the Cadillac Housing Commission for a 5-year term to expire on January 20, 2031.

Motion unanimously approved.

C. Council Nominee for the Alliance for Economic Success Board of Directors.

Peccia noted we do have an agreement in place with the Alliance for Economic Success (AES). He stated as part of that agreement it allows for City Council to place a member representing the City on their local board. He noted he believes the Mayor has served in that capacity in the past but it could be anybody including a staff member.

2026-004 Appointment to the Alliance for Economic Success Board of Directors.

Motion was made by Elenbaas and supported by French to appoint City Manager Peccia to the Alliance for Economic Success (AES) Board.

Motion unanimously approved.

D. City Council Member appointments, regular and alternate, to the Board of Review.

2026-005 Appointments to the Board of Review.

Motion was made by Engels and supported by Hopkins to appoint Council Member Engels as the regular member and Council Member French as the alternate member to the Board of Review for a 1-year term to expire on January 20, 2027.

Motion unanimously approved.

E. Appointment of Mayor Powell to the Planning Commission.

2026-006 Appointment to the Planning Commission.

Motion was made by Engels and supported by Hopkins to appoint Mayor Powell to the Planning Commission.

Motion unanimously approved.

F. Recommendation regarding reappointment to the Zoning Board of Appeals.

2026-007 Approve reappointment to the Zoning Board of Appeals.

Motion was made by Engels and supported by French to approve the reappointment of Larry Bontrager to the Zoning Board of Appeals for a 3-year term to expire on January 21, 2029.

Motion unanimously approved.

G. Recommendation regarding reappointment to the Cemetery Board.

2026-008 Approve reappointment to the Cemetery Board.

Motion was made by Elenbaas and supported by French to approve the reappointment of Charles LaBar to the Cemetery Board for a 3-year term to expire on January 20, 2029.

Motion unanimously approved.

H. Recommendation regarding reappointment to the Brownfield Redevelopment Authority.

2026-009 Approve reappointment to the Brownfield Redevelopment Authority.

Motion was made by Hopkins and supported by French to approve the reappointment of Mike Figliomeni to the Brownfield Redevelopment Authority for a 3-year term to expire on January 20, 2029.

Motion unanimously approved.

I. Recommendation regarding appointment to the Downtown Development Authority.

2026-010 Approve appointment to the Downtown Development Authority.

Motion was made by French and supported by Hopkins to approve the appointment of Tiyi Schippers to the Downtown Development Authority for a 4-year term to expire on January 20, 2030.

Motion unanimously approved.

CITY MANAGER'S REPORT

A. Maple Hill Cemetery Board Recommendations

Peccia noted the Maple Hill Cemetery Board met last fall and would like to add additional language to the Maple Hill Cemetery Rules and adjust the current rates due to increased costs. He discussed the recommended changes which were listed in the Council Communication included in the Council packet.

2026-011 Approve adjustment to cemetery rates.

Motion was made by Elenbaas and supported by Hopkins to approve the recommendations of the Maple Hill Cemetery Board to adjust cemetery rates as presented.

Motion unanimously approved.

B. Early Voting Agreement

Peccia noted following the adoption of Proposal 2022-2, municipalities are required to have at least one early voting site for statewide and federal elections. He stated Wexford County has provided a new agreement to facilitate early voting for two calendar years, beginning January 1, 2026 through December 31, 2027.

The City Clerk noted the early voting location will change from the Wexford County Lake Street facility to the Wexford County Civic Arena.

2026-012 Approve Early Voting Agreement.

Motion was made by Engels and supported by Elenbaas to authorize the City Clerk to execute an agreement with Wexford County to conduct Early Voting for two calendar years, beginning January 1, 2026 through December 31, 2027.

Motion unanimously approved.

C. Cadillac Housing Commission compensation change request.

Peccia noted because of how the Housing Commission was established it is up to the City Council to approve the compensation change request. He stated the monies do not come from the City's coffers.

2026-013 Approve Cadillac Housing Commission compensation change request.

Motion was made by Elenbaas and supported by Hopkins to approve the compensation change request for the Cadillac Housing Commission as presented.

Motion unanimously approved.

D. Bids and recommendation regarding Tree Removal Services.

Peccia noted the City received an Urban and Community Forestry grant from the Michigan Department of Natural Resources. He stated a portion of those grant funds are for the removal of dead, dying, diseased, or dangerous trees in the Kenwood Park area. He noted 15 bids were received and the recommendation is to go with the lowest bidder, Joe's Tree Service, in the amount of \$19,818.

Owen Roberts, Director of Finance, noted a big part of the grant was for tree planting but we do have a number of trees that need to come down and they were able to allocate some funds to do that for trees in this condition. He stated we will be planting more trees than we take down.

2026-014 Award Tree Removal Services Project.

Motion was made by Elenbaas and supported by Hopkins to award the Tree Removal Services Project to Joe's Tree Service in the amount of \$19,818.

Motion unanimously approved.

E. Bids and recommendation regarding Compact Tractor Purchase.

Peccia noted the City received 9 bids for the purchase of a compact tractor for the Water Department. He stated the tractor will be used primarily to maintain the grounds at the water department headquarters and to move dirt, snow, and various inventory and other parts around the facility. He noted the two lowest bids did not fully meet the required specifications related to fuel capacity and loader lift requirements. He stated the recommendation is to award the purchase to the lowest bidder that did meet the requirements, Ellens Equipment, in the amount of \$22,316.21

2016-015 Award purchase of Compact Tractor.

Motion was made by Hopkins and supported by Elenbaas to award the purchase of a 2025 Bobcat CT2025 compact tractor to Ellens Equipment in the amount of \$22,316.21.

Motion unanimously approved.

F. Bids and recommendation regarding Fire Department Portable Radio Purchase.

Peccia stated the Cadillac Fire Department was awarded a \$202,000 grant through the Department of Homeland Security's Assistance the Firefighters Grant Program for the purchase of fire services portable radios and accessories. He noted the grant has a maximum award of \$192,380.85 with a required local match of \$9,619.05 (5%). He stated 3 bids were received and the recommendation is to award the purchase to the lowest bidder, AMK Services LLC in the amount of \$167,314 and to include up to an additional \$10,000 in approved accessories from AMK Services LLC.

2016-016 Award purchase of Fire Department Portable Radios.

Motion was made by Elenbaas and supported by Hopkins to award the purchase of portable radios to AMK Services LLC in the amount of \$167,314 and to include up to an additional \$10,000 in approved accessories from AMK Services LLC.

Motion unanimously approved.

G. Recommendation regarding approval of entering into an agreement with the DDA for management of the Cadillac Commons.

Peccia noted the next item is a recommendation regarding the approval of entering into an agreement with our Downtown Development Authority for management of the Cadillac Commons. He stated the Cadillac Commons is home to some of what he thinks are the most remarkable publicly funded facilities in the entire state. He noted it is home to the Rotary Performing Arts Pavilion, the White Pine Trailhead, The Market, the Plaza and the City Park several of which all came from nothing within the span of 10 years or less. He stated the City has simply looked at those spaces as nothing other than spaces available for people to reserve and rent for a public or private event, He noted we haven't really taken that next step in evolution of managing those facilities.

Peccia stated we have broken apart the shared position of Downtown Development

Authority (DDA) Director with our Community Development Director position and created a stand-alone DDA position that is also our Main Street Program Manager. He noted the area of focus for that position and for that authority board is where Cadillac Commons is located. He stated this next evolution that we are asking City Council to join with the DDA in moving this forward would be to enter into an agreement that slides the operations of those facilities to the responsibility to the DDA and subsequently the DDA Director/Main Street Program Manager. He noted they will remain assets of the City. He stated the DDA has already moved on this item in terms of their support and it has gone through legal analysis.

Peccia noted this agreement would include management of those facilities and the responsibility of the DDA to establish their rules and rates for reservations.

Travis Owens, DDA Director/Main Street Program Manager, stated the DDA has been looking to manage these spaces. He noted it is something we recognize as an amazing community asset and something we can manage effectively. He stated with the way the DDA is structured, essentially any revenue that we bring in from these rentals we can turn back into investment in downtown. He noted every dollar stays downtown to make it a better place for our citizens to live, work and visit. He stated pending Council vote tonight we would take over the management to make sure that we can prioritize community use of the space including community events, local nonprofits, and residents to maximize utilization of that space to ensure the public benefit and then establish a transparent rate structure reflecting the quality of the facility and its amenities. He noted he feels with his position in place we're in a position to take on the management of this space and he appreciates Council's consideration.

French asked if the fees received for rentals be going into an account that would stay in the Commons account as opposed to the DDA itself.

Owens stated the DDA boundary includes the Commons so it is his understanding that it would stay in a fund for the DDA as opposed to being a smaller circle drawn around the Commons.

French noted she sees the DDA as more private businesses and of course the Commons is all public infrastructure so she is curious how you might keep those funds separate.

Peccia noted the ability for the DDA to spend money has to be in line with the tax increment financing plan that's in place with the DDA as well as in line with any legal requirements. He stated the infrastructure that the DDA would be improving, replacing or beautifying, the expenditure of those funds would all be for public purposes not to enhance a private business or entity.

Owens stated the tax increment financing plan includes goals like the funds could be used to support parking lot repairs and upgrades, streetscape beautification and new signage, curb and gutter improvements, rehabilitation of older commercial buildings so we are talking about public infrastructure still that can be improved within the DDA with that fund.

Mayor Powell stated if he remembers correctly, last October you were going to have pricing and everything. He asked if that has already happened.

Owens noted we are waiting on approval from the DDA board of a reservation policy. He stated the management agreement is step one to give us the authority, then the DDA board would vote to approve a reservation policy and that reservation policy would include a rate table so it has not happened.

Engels stated the DDA board, much like we did tonight with former Mayor Schippers, is nominated and approved by Council. He noted those board positions are definitely important. He stated it is a 10-person board and those are the people who made the decision to hire Travis and those are the people that make the decisions about the sidewalks downtown that were mentioned by Gwen Dubravec.

Elenbaas read the following portion of the Council Communication that was included in the packet "The purpose of this agreement is to formalize the Downtown Development Authority (DDA) as the entity responsible for management, scheduling, marketing, and administration of the Cadillac Commons, including managing street closures and parking. The City retains responsibility for general maintenance and infrastructure".

Peccia noted one example is that if an event was occurring at the Rotary Performing Arts Pavilion and they requested the closure of Lake Street that would no longer have to come before Council for approval. He stated closures on Mitchell Street or banners on Mitchell Street would still need to come before Council for approval because Mitchell Street is a state road and under state requirements, it requires the City Council to approve it first before the state will consider it.

French asked Travis Owens when those rates get approved if he will be bringing that before City Council.

Owens stated that with this management agreement, that approval would come from the DDA. He noted you essentially use this agreement to grant us operational authority and his board would make the decision on the rate table. He stated that after the rate table is established, he would be happy to come back and provide an update.

Peccia noted it will be published on our website.

2016-017 Approve Agreement with the DDA for management of the Cadillac Commons.

Motion was made by Elenbaas and supported by Hopkins to approve the Agreement with the DDA for management of the Cadillac Commons.

Motion unanimously approved.

Engels stated he would like to move forward with putting the DDA meetings online.

H. City Manager Adjustment

Peccia advised that nothing was done on short notice or sneakily or inappropriately. He stated that it's been approximately two and a half to three fiscal years since a compensation

adjustment was actually implemented. He noted when going through the evaluation process last year, Council stated there was a desire to separate the evaluation process from the compensation process so that is why it didn't happen like it did in the past. He stated the public packet includes all of the data he compiled along with his request.

Peccia noted that given the period of time since his last cost of living adjustment, he did a deeper dive to see where he was relative to his counterparts throughout our region and area. He stated he retrieved the vast majority of the data from the Michigan Municipal League and then looked at it five different ways to try to get an idea of a benchmark of the average. He noted he then looked at what the average of all of averages were and came up with another number. He stated his desire is to simply be made average.

Peccia stated in addition to salary there are also a couple of areas that he is requesting Council to review in terms of clarifications in his employment agreement. He noted all of the requests are included in the public packet. He stated he did send an email to Council earlier today clarifying the earned vacation and sick leave request.

Peccia noted he is not looking at moving on because Cadillac is his home. He stated that he has committed quite a number of years here and he loves serving this community. He noted he believes that we have some really exciting projects on the horizon and a lot of good work to do. He stated he thanks Council in advance of any consideration that they are willing to provide.

Elenbaas stated the City Manager's salary is currently \$120,200 and his last raise was in 2023. He noted when he worked for the City as a non-union employee his pay raise was based on what the union received. He stated in 2024, 2025, and 2026 the union received 4%, 3.5% and 3.5% respectively. He noted that would equate to 11% with the City Manager's salary going from \$120,200 to \$134,000. He noted he is not saying this where he is at but he is just providing information. He reminded everyone that this a negotiation process.

French noted the City Manager explained that he did a deep dive to find the averages of his peers in the area which produced these higher numbers. She stated the rest of the staff received 11% over the last three fiscal years and the City Manager has not received a raise over that time. She noted the crunch of the economy and inflation has been pretty steep so she would not be opposed to granting an 11% increase to his base salary to allow for parity to exist between him and the rest of the City employees.

Elenbaas noted when he first came on Council he thought the City Manager was grossly overpaid but he researched city managers in towns our size and found out that only 1 out of 15 made less. He stated he now tells people that the City Manager is not overpaid.

French noted the City Manager has vast historic knowledge of all of the projects we have pending so that in itself is worth warranting at least the cost-of-living raises that other employees have received.

Elenbaas noted if you want somebody else to come here, you're going to pay a lot more than the City Manager is making.

Hopkins noted he reviewed the numbers and the City Manager is at the low end of comparable-sized cities. He stated he is not saying the number is 11% but something needs to happen. He noted the City Manager has 16 years of experience, knows the area and the culture and so those things need to be taken into account. He stated he tends to award effort because none of us are perfect.

Engels noted the evaluation process had become a tool that was no longer useful because the criticism was being used in a way it shouldn't have been. He stated he doesn't think people were able to be open and honest with the City Manager regarding his performance. He noted we did not want the evaluation part to come with a raise attached. He stated when it comes to paying the City Manager more that's a very public discussion because that's us justifying the expense. He noted as we were talking about the evaluation versus the raise, we wanted those separate. He stated we did want them listed clearly on the agenda, for them to be public, and for the paper to be notified. He noted it did not need to be a long, drawn-out thing with multiple weeks of feedback,

Engels stated we have not given the City Manager a raise in two and a half years and he believes now is the time to consider it. He noted he is definitely in support of a compensation adjustment. He briefly mentioned the raises provided to the City Manager in the past. He noted he would like to see the raise closer to 6% or 7%.

Mayor Powell stated that he was not able to access the MML, but he did some research on govsalaries.com. He noted some of the data that the City Manager is comparing to other communities have a much larger employee count as well. He stated it is unclear if the MML salary survey data is reporting true base salary versus base plus benefits.

Mayor Powell stated with his own research he doesn't agree with some of these figures. He noted after careful review of the City Manager's request, including the compensation analysis and proposed updates to the employment agreement, he recognizes the alleged compensation gap. He stated this consideration deserves thoughtful and long-term evaluation, not just a weekend review for him since this brand new.

Mayor Powell stated he has a hard time agreeing with even the lower percentage increase because we have a community that is so divided and he does not see what the City Manager is doing to rectify the situation. He noted we don't reward bad behavior we reward good behavior. He questioned why we are requesting this now when we are so divided in the community. He stated with the information not being completely clear on the multiple different websites, he can't make a decision on this yet. He noted he thinks it has to part of the evaluation because it is circumventing the review process. He added he wants to do a true analysis of salaries of the surrounding counties for the same job.

Elenbaas stated the City Manager hasn't had a raise in two and a half years.

2016-018 Approve salary adjustment for City Manager.

Motion was made by Elenbaas and supported by French to give the City Manager a 9% raise, not retroactive.

Ayes: French, Elenbaas, Hopkins, Engels

Nays: Mayor Powell

Motion carried.

Elenbaas stated the next item for consideration is earned vacation and sick leave. He noted when he retired from the City his sick days were paid out. He stated he received a cash payment and the other half went into medical account he could use for bills. He asked the City Manager if that is what he is requesting.

Peccia stated there was a point in time where that was benefit available to all non-union employees but that benefit was turned off prior to him starting with the City. He noted there are still a few City employees that have that benefit and half of those are his department heads. He stated he would ask to have parity with them on that benefit.

Engels noted the severance package for the City Manager includes one year of salary which is why he's not necessarily in favor of any of the extra severance items.

Elenbaas, Hopkins, and French agreed.

Peccia noted that if he had been receiving regular cost of living adjustments it would have been approximately 11% over the last fiscal years and it wouldn't have been delayed. He stated he is humbled by everyone's conversation and thoughts but by the increase not being retroactive and also being a couple of percent less he asked if it would be appropriate to ask Council to reconsider the retroactivity of any of it.

Elenbaas stated he does not support it being retroactive.

French stated at this point she wouldn't do retroactive, but she would like to have a conversation about all of these amendments to the City Manager's contract that have been negotiated at various times throughout the year. She noted it seems inconsistent to her and she asked if Council would consider developing a calendar or schedule where we are visiting the City Manager's contract negotiation in a more consistent manner. She stated this would give Council notice of the negotiation process and also provide the public with notice that we are working on it.

Engels asked the City Manager to describe the process that occurred for several years where he met with the Mayor and the Mayor Pro Tem.

Peccia noted that while his evaluation process didn't always happen in the spring, everything was always retroactive to May. He stated the Mayor would get feedback and input from the other Council Members and then meet with me privately and at times bringing along the Mayor Pro Tem. He noted there is nothing in the Charter or a legal requirement that anybody come along. He stated his agreement just talks about the Mayor providing me with feedback and then providing me with the opportunity to provide my own feedback to City Council. He noted at the same time that the evaluation was occurring, he would also bring forward his compensation and benefit requests for consideration.

Peccia stated that other than the past two to three years, City Council would conduct my evaluation, report out to me in closed session, and allow me to provide feedback. He noted there was a public reporting of a summary of the evaluation by the Mayor. He stated then in a public format there would be any conversation regarding compensation and benefits.

Elenbaas stated he never liked the idea of the Mayor and the Mayor Pro Tem sitting down with the City Manager away from Council discussing his work and then coming to the Council and debating his raise.

Engels noted that is part of why that process stopped.

Elenbaas stated we all can agree that the entire process needs to be revamped.

Mayor Powell stated he plans to send out some emails so we can collaborate to come up with an idea.

Elenbaas noted Council will be doing this again in May. He stated he wants to get back on track. He noted it used to be that the Mayor would get the paperwork out to Council in May, we would get it back to the Mayor in June and then vote on a raise in July.

Elenbaas asked if anybody wanted to discuss COBRA. He noted he is not in favor of increasing it to 12 months.

Engels stated as far as changing the language from “shall” to “may” regarding conducting the City Manager’s evaluation, he believes Council has a duty, as the executive board, to review the executive. He noted that process was broke and was not useful, but he doesn’t feel we have lost anything by skipping it the last two years. He stated we will gain a lot by putting it back into place with some structure.

Mayor Powell stated he does think that it should have been happening because we are such a divided community because of Mr. Peccia not fulfilling some of the obligations, like some of these grants. He noted we don’t have the money yet or even know the terms of them yet.

French stated she would like to counter the comment by the Mayor about the division in the community being Mr. Peccia’s fault. She noted she doesn’t want to throw blame but there is plenty of blame to go around. She stated when you’ve got community upheaval and you’ve got people that the community chooses to target you can’t necessarily blame the target.

French stated she is in favor of trying to heal our community and to help them see that we are all here on their behalf, including the City Manager. She noted unfortunately there’s situations in the general public, involving social media and all kinds of things, where there’s misinformation and misunderstandings so she wouldn’t want to lay that blame at anybody’s feet.

Mayor Powell noted it starts at the top and we’re the top.

INTRODUCTION OF ORDINANCES

- A. Adopt resolution to introduce Ordinance to Amend the Zoning Ordinance to Conditionally Rezone Property (407 E. Chapin St.) and set a public hearing for February 2, 2026.

Peccia noted the Planning Commission voted unanimously to approve the conditional rezoning request for the property located at 407 E. Chapin Street. He stated the owners desire to turn it into a bed and breakfast.

2026-019 Set public hearing for Ordinance 2026-01.

Motion was made by Elenbaas and supported by Hopkins to adopt the resolution to introduce Ordinance to Amend the Zoning Ordinance to Conditionally Rezone Property (407 E. Chapin St.) and set a public hearing for February 2, 2026.

French noted she attended the Planning Commission meeting and there was a lot of support in the neighborhood for this change.

Engels noted he can see this house from his office window and the neighborhood was very supportive.

Motion unanimously approved.

- B. Adopt resolution to introduce Ordinance to Amend the Zoning Ordinance to Conditionally Rezone Property (620 Arthur St.) and set a public hearing for February 2, 2026.

Peccia noted the Planning Commission voted unanimously to approve the conditional rezoning request for the property located at 620 Arthur Street. He stated the owners are requesting rezoning from R-2 to RM-1.

2026-020 Set public hearing for Ordinance 2026-02.

Motion was made by Hopkins and supported by French to adopt the resolution to introduce Ordinance to Amend the Zoning Ordinance to Conditionally Rezone Property (620 Arthur St.) and set a public hearing for February 2, 2026.

Motion unanimously approved.

- C. Adopt resolution to introduce Ordinance to Vacate a Portion of Wall Street and Reserve a Public Utility Easement in Favor of the City and set a public hearing for March 2, 2026.

Peccia noted the Planning Commission voted unanimously to approve the vacation of a portion of Wall Street. He stated this is in reference to the Lakelynn Apartments development project. He noted the reason this is different is because of the need to publish the public hearing notice at different intervals.

2026-021 Set public hearing for Ordinance 2026-03.

Motion was made by Elenbaas and supported by French to adopt the resolution to introduce Ordinance to Vacate a Portion of Wall Street and Reserve a Public Utility Easement in Favor of the City and set a public hearing for March 2, 2026.

Motion unanimously approved.

ADOPTION OF ORDINANCES AND RESOLUTIONS

A. Adopt Resolution Amending General Appropriations Act for Fiscal Year 2026.

Owen Roberts, Director of Finance, noted this is a small budget amendment to accommodate the changes made to the City Manager's contract tonight. He stated the 9% increase is an overall salary increase of about \$10,800 per year and there are also some additional benefits that will be required because they are based on a percentage of that salary. He noted the estimated additional cost will be about \$14,000 per year. He stated since we are 5 ½ months into the fiscal year we don't need to do the amendment for the entire amount. He requested a budget amendment in the amount of \$8,500.

2026-022 Adopt Resolution Amending General Appropriations Act for Fiscal Year 2026.

Motion was made by Elenbaas and supported by French to adopt the Resolution Amending General Appropriations Act for Fiscal Year 2026.

Ayes: French, Elenbaas, Hopkins, Engels

Nays: Mayor Powell

Motion carried.

MINUTES AND REPORTS OF BOARDS AND COMMISSIONS

A. Zoning Board of Appeals

B. Planning Commission

PUBLIC COMMENTS

Konrad Isch expressed concerns about the performance of the City Manager and discussed the campaign violations made by Ruthann French.

Carla Moore commented on the evaluation process. She stated the PFAS grants should be overseen by a separate group, not City employees or the LDFA. She noted the boards that represent the City should be comprised of citizens of the City.

Paula Meyers noted that social media has torn our City apart.

Mike Coy stated he believes the City Manager made a good case for receiving a raise that would be comparable to other city managers in our region. He expressed support for annual increases in utility rates.

Michelle Trivieri stated she was a colleague of Ruthann French at the DNR and she has an incredible reputation. She noted she thinks the Cadillac Commons is the crown jewel of our City and she is looking forward to seeing where the DDA is going to go with it.

GOOD OF THE ORDER

Peccia stated he is humbled and he thanked everyone on City Council for their good debate and consideration of his requests. He noted that he respects the entire Council and is looking forward to all that our new year has to offer.

Mayor Powell stated he is looking forward to working with everybody going forward and collaborating with the evaluation process and getting that back on track.

French stated she appreciated the open discussion Council had tonight. She noted this is the first time she's had to go through this process.

Elenbaas stated that overall it was a good thing and something we haven't done in a long time here.

French stated she can see the benefit of having open discussions in front of the public.

French thanked the 827 people who did vote for her, but she noted that she is here for everybody. She thanked those people who come to meetings, but they are a small microcosm of the greater City that we all represent. She stated she is honored to be a Council Member.

CLOSED SESSION

Adjourn to closed session to consider material exempt from discussion or disclosure by statute under MCL 15.268 (h), specifically identified as attorney-client privileged written legal opinions.

2026-023 Adjourn to closed session.

Motion was made by Hopkins and supported by Elenbaas to adjourn to closed session to consider material exempt from discussion or disclosure by statute under MCL 15.268 (h), specifically identified as attorney-client privileged written legal opinions; invite Owen Roberts, Director of Finance, and Jeff Dietlin, Director of Utilities.

Motion unanimously approved.

2026-024 Return to open session.

Motion was made by Engels and supported by Elenbaas to return to open session.

Motion unanimously approved.

ADJOURNMENT

Respectfully submitted,

David C. Powell, Mayor

Sandra Wasson, City Clerk

DRAFT

February 2, 2026

Council Communication

Re: Resolution to Recommend an Ordinance to Amend the Zoning Ordinance to Conditionally Rezone 407 E Chapin St.

The Cadillac Planning Commission voted unanimously at their November 24, 2025, meeting to approve and recommend that Council approve the Conditional rezoning request for 407 E Chapin Street. Property owners, Jennifer and Bryan Haney, are requesting conditional rezoning of 407 E Chapin Street from R-3 to RM-1 on the condition that the subject property be used only as a single-family home or a bed and breakfast, subject to special land use approval.

The Frank J. Cobbs House, a prominent 1898 George Mason design within Cadillac's historic district, is proposed for rezoning from R-3 (One-Family Residential) to RM-1 (Multiple-Family Residential) to accommodate its conversion into a traditional, owner-occupied, three-room bed and breakfast.

Applicants Jennifer and Bryan Haney, with the support of the Historic District Commission, intend to preserve the property's historic character while offering guest accommodations that align with both the City's zoning ordinance and its Master Plan's encouragement of adaptive reuse near the downtown corridor. The property's location in a transitional area—where single-family homes, duplexes, and higher-density housing converge—supports the compatibility of this lodging use. The Haney's have committed to meeting all regulatory, building, and code requirements, and the business will not be used for short-term rental platforms.

Staff finds the rezoning request consistent with the area's zoning context, compatible with surrounding land uses, and supportive of the city's economic development and historic preservation goals. The opening of The Cobbs House Bed & Breakfast will be Fall 2026.

Recommended Action

Council is asked to adopt an ordinance to amend the zoning ordinance to conditionally rezone 407 E Chapin Street.

City Council

200 North Lake Street
Cadillac, Michigan 49601
Phone (231) 775-0181
Fax (231) 775-8755



Mayor
David C. Powell

Mayor Pro-Tem
Robert J. Engels

Councilmembers
Bryan Elenbaas
Ruthann French
Scott Hopkins

RESOLUTION NO. _____

RESOLUTION ADOPTING ORDINANCE NO. ____

**AN ORDINANCE TO AMEND THE ZONING ORDINANCE TO CONDITIONALLY REZONE
PROPERTY**

At a meeting of the City Council of the City of Cadillac, Wexford County, Michigan, held on
February 2, 2026, at 6:00 p.m.

PRESENT: _____

ABSENT: _____

The following preamble and resolution was offered by _____ and
seconded by _____.

WHEREAS, Jennifer and Bryan Haney ("Owner") own real property in the City of
Cadillac legally described as follows:

LOTS 1, 2 & 3, BLOCK 36 MITCHELL'S REVISED PLAT OF THE VILLAGE OF
CLAM LAKE, CITY OF CADILLAC

and whose tax identification number is 10-086-00-493-00, and commonly known as 407 E.
Chapin Street ("Parcel"); and

WHEREAS, the Parcel is currently zoned R-3, One-Family Residential; and

WHEREAS, the Owner submitted an application (the "Application") to the City
Planning Commission requesting that the Parcel be rezoned to RM-1, Multiple-Family
Residential, in order to develop and operate a bed and breakfast on the Parcel; and

WHEREAS, upon giving notice in accordance with the Michigan Zoning Enabling Act, Act 110 of 2006, MCL 125.3101 *et seq.* ("MZEA"), the City Planning Commission conducted a public hearing regarding rezoning of the Parcel on November 24, 2025; and

WHEREAS, the City Planning Commission has recommended that the City Council amend the City Zoning Map to rezone the Parcel to RM-1, Multiple-Family Residential; and

WHEREAS, pursuant to Section 5.2 of the Cadillac City Charter, the City introduced the Ordinance on December 1, 2025, and held a public hearing on January 5, 2026; and

WHEREAS, the City desires to amend its Zoning Ordinance to rezone the Parcel from R-3 One-Family Residential to RM-1 Multiple-Family Residential subject to the conditions that were offered in writing by the Owner and provided a conditional rezoning agreement is executed between the Owner and the City incorporating those conditions.

NOW, THEREFORE, the City Council of the City of Cadillac, Wexford County, Michigan, resolves as follows:

1. Ordinance No. 2026-__, An Ordinance to Amend The Zoning Ordinance To Conditionally Rezone Property (**Exhibit A**) is hereby adopted, subject to approval of the conditional rezoning agreement, attached as **Exhibit 1** to Ordinance.
2. The Ordinance shall be filed with the City Clerk.
3. The City Clerk is directed to publish a notice of adoption, including a summary of the Ordinance in a newspaper of general circulation in the City within seven (7) days. The summary and notice of the adoption shall be substantially the form of **Exhibit B**.
4. A copy of the Ordinance shall be available for examination at the office of the City Clerk, and copies may be provided for a reasonable charge.

5. Any and all resolutions that are in conflict with this Resolution are hereby repealed to the extent necessary to give this Resolution full force and effect.

YEAS: _____

NAYS: _____

STATE OF MICHIGAN)
)
COUNTY OF WEXFORD)

I, Sandra Wasson, City Clerk of the City of Cadillac, hereby certify this to be a true and complete copy of Resolution No. ____, duly adopted at a meeting of the City Council held on the 2nd day of February, 2026.

Sandra Wasson
Cadillac City Clerk

EXHIBIT A

ORDINANCE NO. _____

AN ORDINANCE TO AMEND THE ZONING ORDINANCE TO CONDITIONALLY REZONE PROPERTY

THE CITY OF CADILLAC ORDAINS:

Section 1. Amending Zoning District Map.

The City hereby amends the City Zoning Map to change the R-3, One-Family Residential District zoning designation and established use district as shown on the City Zoning Map for the real property legally described as:

LOTS 1, 2 & 3, BLOCK 36 MITCHELL'S REVISED PLAT OF THE VILLAGE OF
CLAM LAKE, CITY OF CADILLAC

(Tax identification No. 10-086-00-493-00) (the "Parcel").

to the RM-1, Multiple-Family Residential District zoning designation and corresponding use district under Chapter 46 of the Cadillac City Code.

Section 2. Conditional Approval.

This rezoning is conditionally approved and subject to the use and development conditions established in the Conditional Rezoning Approval Agreement, attached as **Exhibit 1**, which is incorporated herein by reference and which includes the following conditions:

1. The parcel shall only be used for the development and operation of a bed and breakfast or as a one-family detached dwelling.
2. Nothing in this Ordinance shall relieve the Parcel's owner from any obligation to apply for and receive approval of a special use permit or site plan required by the City's Zoning Ordinance.

Section 3. Severability.

Should any portion of this Ordinance be found invalid for any reason, such holding shall not be construed as affecting the validity of the remaining portions of this Ordinance.

Section 4. Repealer.

All other ordinances inconsistent with the provisions of this Ordinance are hereby repealed but only to the extent necessary to give this Ordinance full force and effect; provided, however, that if Section 2 is found invalid, then Section 1 shall no longer be of any force or effect.

Section 5. Effective Date.

This Ordinance shall take effect twenty (20) days after its publication as provided by law.

Exhibit 1 to Ordinance No. 25-_____

CONDITIONAL REZONING AGREEMENT

THIS CONDITIONAL REZONING AGREEMENT made this ____ day of _____, 2026, by and between the City of Cadillac ("City"), a Michigan municipal corporation, whose offices are located at 200 N Lake St, Cadillac, MI 49601, and Jennifer and Bryan Haney ("Owner"), the owners of the property that is the subject of this Agreement, whose address is 407 E. Chapin Street, Cadillac, MI 49601.

WHEREAS, Owner submitted an amended application to rezone certain real property ("Property") located in the City of Cadillac, Michigan, legally described as:

LOTS 1, 2 & 3, BLOCK 36 MITCHELL'S REVISED PLAT OF THE
VILLAGE OF CLAM LAKE, CITY OF CADILLAC,

from its current designated as zoning classification R-3, One-Family Residential to RM-1, Multiple-Family Residential District pursuant to the City of Cadillac Zoning Ordinance to develop and operate a bed and breakfast; and

WHEREAS, Owner voluntarily offered, in writing, certain use limits as conditions of the rezoning; and

WHEREAS, pursuant to the Michigan Zoning Enabling Act, PA 110 of 2006, the City may approve rezoning conditions offered by an applicant and may establish a time period during which the conditions apply; and

WHEREAS, on November 24, 2025, the City of Cadillac Planning Commission voted to recommend approval of Owner's request to conditionally rezone the Property and to accept Owner's proposed limitations on the use of the Property as more specifically set forth in this Agreement; and

WHEREAS, on _____ the City of Cadillac City Council voted to approve Owner's requested conditional rezoning, accept Owner's proposed limitations on the use of the Property, and approve the terms and conditions of this Conditional Rezoning Agreement.

NOW, THEREFORE, in consideration of the mutual covenants and promises contained herein, the City and Owner agree as follows:

1. Conditional Rezoning

Pursuant to Section 405 of the Michigan Zoning Enabling Act, MCL 125.3405, Owner's agrees to limit the use of the Property as set forth in this Agreement. Upon execution of this Agreement by the parties, the City shall effectuate the conditional rezoning of

the Property from zoning classification R-3, One-Family Residential to RM-1 Multiple-Family Residential District.

2. Rezoning Conditions

Owner agrees that the development of the Property will proceed in accordance with the following conditions which have been offered by Owner as a condition of rezoning the Property:

- a) The parcel will only be used for the development and operation of a bed and breakfast or as a one-family detached dwelling.
- b) Nothing in this Ordinance shall relieve Owner from any obligation to apply for and receive approval of a special use permit or site plan required by the City's Zoning Ordinance.

3. Future Development.

All development of the Property shall be in strict compliance with all applicable City Ordinances, regulations, and applicable building code and utility requirements.

4. Entire Agreement.

This Agreement constitutes the entire understanding between the parties with respect to the subject matter hereof, and all prior or contemporaneous agreements or understandings with respect hereto shall be deemed merged into this Agreement.

5. No Oral Amendment or Modification.

No amendments, waivers or modifications hereof shall be made or deemed to have been made unless in writing and executed by the parties.

6. Amendment of Conditions.

During the time period for commencement of an approved development or use specified pursuant to the Zoning Ordinance or during any extension thereof granted by the City Council, the City shall not add to or alter the conditions in this Agreement. This Agreement may be amended thereafter in the same manner as was prescribed for the original rezoning and the Agreement.

7. Severability.

If any provision of this Agreement shall be declared invalid, illegal, or unenforceable by a court of competent jurisdiction, the remainder of this Agreement shall not be affected thereby and this Agreement shall be construed as if those provisions were not contained in this Agreement.

8. Applicable Law.

This Agreement shall be interpreted and enforced according to the laws of the State of Michigan.

9. Recordation.

This Agreement will be filed by the City with the Register of Deeds of Wexford County for recording.

10. Violation and Enforcement.

The failure of any party to complain or enforce any act or omission on the part of another party, no matter how long the same may continue, shall not be deemed to be an acquiescence or waiver by such party of any of its rights hereunder. No waiver by any party at any time, express or implied, or any breach of any provision of this Agreement shall be deemed a waiver of a breach of any other provision of this Agreement or a consent to any subsequent breach of the same or any other provision of this Agreement. If any action by any party shall require the consent or approval of another party, such consent or approval of such action shall not be deemed a consent to or approval of any other provision of this Agreement.

11. Violation of Zoning Ordinance.

Any failure by Owner to comply with the terms and conditions of this Agreement constitutes a violation of the City's Zoning Ordinance, a nuisance per se and subjects Owner to the applicable penalties and remedies provided by law, including, but not limited to, immediate injunctive relief. Notwithstanding any other term or condition of this Agreement to the contrary, if Owner, its successors or assigns fails to comply with the use and development conditions of this Agreement or attempts to use or develop the Property contrary to Owner's offered use and development conditions, the Property conditionally rezoned to RM-1, Multiple-Family Residential District will immediately revert to its former zoning classification R-3 One-Family Residential District and any approval of the site plan for the proposed development shall terminate. In such an event, Owner may thereafter develop the Property only in accordance with a site plan that is approved by the Planning Commission and complies with all City zoning, engineering, building and fire codes, as well as Ordinances in effect at that time.

Nothing in this Agreement will relieve Owner from any obligation to apply for and receive approval of a special use permit or site plan required by the City's Zoning Ordinance.

12. Binding Effect; Assignment.

This Agreement runs with the land and binds and insures to the benefit of City and the successors and assigns of Owner.

13. Effective Date.

The conditional rezoning approved by the City Council is effective as provided by law.

14. Time Period for Establishing Development or Use.

The approved development and/or use of the Property authorized by this Agreement must commence within 18 months after the conditional rezoning takes effect and thereafter proceed diligently to completion. Upon written request, this time may be extended by the City Council if (1) it is demonstrated to the City Council 's reasonable satisfaction that there is a strong likelihood that the development and/or use will commence within the period of extension and proceed diligently thereafter to completion and (2) the City Council finds that there has not been a change in circumstances that would render the current zoning with the Agreement incompatible with other zones and uses in the surrounding area or otherwise inconsistent with sound zoning policy.

15. Subsequent Rezoning of Land.

If the Property is rezoned to a different zoning classification or to the same zoning classification but with a different or no agreement, whether as a result of a reversion of zoning pursuant to the Zoning Ordinance or otherwise, this Agreement shall cease to be in effect. Upon Owner's written request, the City Clerk will record with the Register of Deeds of the County in which the land is located a notice that the Agreement is no longer in effect.

16. City Right to Rezone.

Nothing in this Agreement, nor in the provisions of the Zoning Ordinance shall be deemed to prohibit the City from rezoning all or any portion of the Property to another zoning classification. Any rezoning shall be conducted in compliance with the Zoning Ordinance and the Zoning Enabling Act (MCL 125.1301 et seq.)

[SIGNATURE BLOCKS ON FOLLOWING PAGE]

IN WITNESS WHEREOF, the parties have caused this Conditional Rezoning Agreement to be executed effective as of the day and year first above written.

City of Cadillac, a Michigan municipal corporation

By: _____
David C. Powell, Mayor

By: _____
Sandra Wasson, City Clerk

STATE OF MICHIGAN)
) ss.
COUNTY OF WEXFORD)

The foregoing instrument was acknowledged before me, a notary public, on the ____ day of _____, _____, by David C. Powell, its Mayor and Sandra Wasson, its Clerk, on behalf of the City of Cadillac.

Notary Public, _____ County, MI
My Commission Expires: _____
Acting in _____ County, MI

Jennifer Haney ("Owner")

Bryan Haney ("Owner")

Jennifer Haney

Bryan Haney

STATE OF MICHIGAN)
) ss.
COUNTY OF WEXFORD)

The foregoing instrument was acknowledged before me, a notary public, on the ____ day of _____, _____, by Jennifer Haney and Bryan Haney.

Notary Public, _____ County, MI
My Commission Expires: _____
Acting in _____ County, MI

Prepared by/Return to:
Mallory E. Reader
Foster, Swift, Collins & Smith, P.C.
1700 East Beltline NE, Suite 200
Grand Rapids, Michigan 49525
(616) 726-2200

EXHIBIT B

NOTICE OF ADOPTION AND SUMMARY OF ORDINANCE NO. _____

On February 2, 2026, at a meeting of the City Council of the City of Cadillac, Wexford County, Michigan, the City Council adopted Ordinance No. _____, An Ordinance to Amend The Zoning Ordinance To Conditionally Rezone Property. The Ordinance is available for examination at the office of the City Clerk, 200 N Lake Street, Cadillac, Michigan 49601, and copies may be provided at a reasonable charge. The Ordinance takes effect 20 days after its adoption. The following is a summary of the Ordinance.

SUMMARY OF ORDINANCE NO. _____

Section 1. Map Amendment. Section 1 of the Ordinance amends the City of Cadillac Zoning Map to change the zoning classification of Parcel No. 10-086-00-493-00 from R-3 to RM-1.

Section 2. Conditional Approval. Section 2 of the Ordinance provides the rezoning is conditionally approved subject to the conditional rezoning approval agreement, which includes that the property may only be used as a bed and breakfast or single-family dwelling and that the owner is not relieved from any obligations to obtain a special use permit and site plan approval.

Section 3. Severability. Section 3 of the Ordinance provides that if any portion of the proposed ordinance is found invalid for any reason, such holding shall not be construed as affecting the validity of the remaining portions of the Ordinance.

Section 4. Repealer. Section 4 of the Ordinance repeals all ordinances inconsistent with the provisions of the Ordinance, but only to the extent necessary to give the Ordinance full force and effect.

Section 5. Effective Date. Section 5 of the Ordinance gives it effect 20 days after adoption.

CITY COUNCIL OF THE
CITY OF CADILLAC, MICHIGAN

By: Sandra Wasson, City Clerk
Cadillac Municipal Complex
200 Lake Street
Cadillac, Michigan 49601
Telephone No: (231) 775-0181

February 2, 2026

Council Communication

Re: Resolution to Recommend an Ordinance to Amend the Zoning Ordinance to Conditionally Rezone 620 Arthur St

The Cadillac Planning Commission voted unanimously at their December 22, 2025, meeting to approve and recommend that Council approve the Conditional rezoning request for 620 Arthur Street. Property owners, Derek and Emily Hamp, are requesting conditional rezoning of 620 Arthur Street from R-2 to RM-1 on the condition that the subject property be used only as a single-family or a two-family home.

The applicants, Derek and Emily Hamp of Cadillac Living LLC, seek conditional rezoning for 620 Arthur Street—from single-family (R-2) to two-family residential (RM-1)—with the stipulation that the property will serve only as a single-family or two-family home. Their plan involves renovating a neglected structure, converting it into two rental units, and making targeted exterior changes like a new deck and separate entries without altering yard space or affecting nearby parks. The project fits with the surrounding zoning, upholds city goals for housing diversity, and draws on the applicants' proven history of responsible property rehabilitation. City staff find that utilities, infrastructure, parking, and site requirements are all sufficient for the proposed use, with no need for public upgrades.

This proposal supports the City Master Plan's emphasis on adaptive reuse and varied housing options near the downtown corridor, while preserving neighborhood character. Staff recommended approval, concluding that revitalizing the property into quality rental housing would reduce blight, increase affordable housing, and likely benefit local property values, all under strict conditions limiting future use to one- or two-family dwellings only.

Recommended Action

Council is asked to adopt an ordinance to amend the zoning ordinance to conditionally rezone 620 Arthur Street.

City Council
200 North Lake Street
Cadillac, Michigan 49601
Phone (231) 775-0181
Fax (231) 775-8755



Mayor
David C. Powell

Mayor Pro-Tem
Robert J. Engels

Councilmembers
Bryan Elenbaas
Ruthann French
Scott Hopkins

RESOLUTION NO. _____

RESOLUTION ADOPTING ORDINANCE NO. ____

**AN ORDINANCE TO AMEND THE ZONING ORDINANCE TO CONDITIONALLY REZONE
PROPERTY**

At a meeting of the City Council of the City of Cadillac, Wexford County, Michigan, held on February 2, 2026, at 6:00 p.m. at the Cadillac Municipal Complex, 200 Lake Street, Cadillac, Michigan.

PRESENT: _____

ABSENT: _____

The following preamble and resolution was offered by _____ and seconded by _____.

WHEREAS, Cadillac Living LLC ("Owner") owns real property in the City of Cadillac legally described as follows:

LOT 12, BLOCK 108, J. CUMMER & SON'S 2ND ADDITION TO CITY OF
CADILLAC, WEXFORD COUNTY, MICHIGAN
and whose tax identification number is 10-058-00-036-00, and commonly known as 620
Arthur Street ("Parcel"); and

WHEREAS, the Parcel is currently zoned R-2, One-Family Residential; and

WHEREAS, Derek Hamp, on behalf of the Owner, submitted an application (the
"Application") to the City Planning Commission requesting that the Parcel be rezoned to RM-
1, Multiple-Family Residential, in order to use the Parcel for a two-family dwelling; and

WHEREAS, upon giving notice in accordance with the Michigan Zoning Enabling Act, Act 110 of 2006, MCL 125.3101 *et seq.* ("MZEA"), the City Planning Commission conducted a public hearing regarding rezoning of the Parcel on December 22, 2025; and

WHEREAS, the City Planning Commission has recommended that the City Council amend the City Zoning Map to rezone the Parcel to RM-1, Multiple-Family Residential; and

WHEREAS, pursuant to Section 5.2 of the Cadillac City Charter, the City introduced the Ordinance on January 20, 2026, and held a public hearing on February 2, 2026; and

WHEREAS, the City desires to amend its Zoning Ordinance to rezone the Parcel from R-2 One-Family Residential to RM-1 Multiple-Family Residential subject to the conditions that were offered in writing by the Owner and provided a conditional rezoning agreement is executed between the Owner and the City incorporating those conditions.

NOW, THEREFORE, the City Council of the City of Cadillac, Wexford County, Michigan, resolves as follows:

1. Ordinance No. 2026-__, An Ordinance to Amend The Zoning Ordinance To Conditionally Rezone Property (**Exhibit A**) is hereby adopted, subject to approval of the conditional rezoning agreement, attached as **Exhibit 1** to Ordinance.
2. The Ordinance shall be filed with the City Clerk.
3. The City Clerk is directed to publish a notice of adoption, including a summary of the Ordinance in a newspaper of general circulation in the City within seven (7) days. The summary and notice of the adoption shall be substantially the form of **Exhibit B**.
4. A copy of the Ordinance shall be available for examination at the office of the City Clerk, and copies may be provided for a reasonable charge.

5. Any and all resolutions that are in conflict with this Resolution are hereby repealed to the extent necessary to give this Resolution full force and effect.

YEAS: _____

NAYS: _____

STATE OF MICHIGAN)
)
COUNTY OF WEXFORD)

I, Sandra Wasson, City Clerk of the City of Cadillac, hereby certify this to be a true and complete copy of Resolution No. ____, duly adopted at a meeting of the City Council held on the 2nd day of February, 2026.

Sandra Wasson
Cadillac City Clerk

EXHIBIT A

**ORDINANCE NO. _____
AN ORDINANCE TO AMEND THE ZONING ORDINANCE TO CONDITIONALLY REZONE
PROPERTY**

THE CITY OF CADILLAC ORDAINS:

Section 1. Amending Zoning District Map.

The City hereby amends the City Zoning Map to change the R-2, One-Family Residential District zoning designation and established use district as shown on the City Zoning Map for the real property legally described as:

LOT 12, BLOCK 108, J. CUMMER & SON'S 2ND ADDITION TO CITY OF
CADILLAC, WEXFORD COUNTY, MICHIGAN

(Tax identification No. 10-058-00-036-00) (the "Parcel").

to the RM-1, Multiple-Family Residential District zoning designation and corresponding use district under Chapter 46 of the Cadillac City Code.

Section 2. Conditional Approval.

This rezoning is conditionally approved and subject to the use and development conditions established in the Conditional Rezoning Approval Agreement, attached as **Exhibit 1**, which is incorporated herein by reference and which includes the following conditions:

1. The Parcel shall only be as a two-family dwelling.
2. Nothing in this Ordinance shall relieve the Parcel's owner, or future owners, from any obligation to apply for and receive approval of a special use permit or site plan required by the City's Zoning Ordinance.

Section 3. Severability.

Should any portion of this Ordinance be found invalid for any reason, such holding shall not be construed as affecting the validity of the remaining portions of this Ordinance.

Section 4. Repealer.

All other ordinances inconsistent with the provisions of this Ordinance are hereby repealed but only to the extent necessary to give this Ordinance full force and effect; provided, however, that if Section 2 is found invalid, then Section 1 shall no longer be of any force or effect.

Section 5. Effective Date.

This Ordinance shall take effect twenty (20) days after its publication as provided by law.

EXHIBIT 1 TO ORDINANCE NO. _____

CONDITIONAL REZONING AGREEMENT

THIS CONDITIONAL REZONING AGREEMENT made this ____ day of _____, 2026, by and between the City of Cadillac ("City"), a Michigan municipal corporation, whose offices are located at 200 N Lake St, Cadillac, MI 49601, and Cadillac Living LLC ("Owner"), the owner of the property that is the subject of this Agreement, whose address is 901 Lincoln Street, Cadillac, MI 49601.

WHEREAS, Owner submitted an application to rezone certain real property ("Property") located in the City of Cadillac, Michigan, legally described as:

LOTS 1, 2 & 3, BLOCK 36 MITCHELL'S REVISED PLAT OF THE
VILLAGE OF CLAM LAKE, CITY OF CADILLAC,

from its current designated as zoning classification R-2, One-Family Residential to RM-1, Multiple-Family Residential District pursuant to the City of Cadillac Zoning Ordinance to use the property for a two-family dwelling; and

WHEREAS, Owner voluntarily offered, in writing, certain use limits as conditions of the rezoning; and

WHEREAS, pursuant to the Michigan Zoning Enabling Act, PA 110 of 2006, the City may approve rezoning conditions offered by an applicant and may establish a time period during which the conditions apply; and

WHEREAS, on December 22, 2025, the City of Cadillac Planning Commission voted to recommend approval of Owner's request to conditionally rezone the Property and to accept Owner's proposed limitations on the use of the Property as more specifically set forth in this Agreement; and

WHEREAS, on _____, 2026, the City of Cadillac City Council voted to approve Owner's requested conditional rezoning, accept Owner's proposed limitations on the use of the Property, and approve the terms and conditions of this Conditional Rezoning Agreement.

NOW, THEREFORE, in consideration of the mutual covenants and promises contained herein, the City and Owner agree as follows:

1. Conditional Rezoning

Pursuant to Section 405 of the Michigan Zoning Enabling Act, MCL 125.3405, Owner's agrees to limit the use of the Property as set forth in this Agreement. Upon execution

of this Agreement by the parties, the City shall effectuate the conditional rezoning of the Property from zoning classification R-2, One-Family Residential, to RM-1, Multiple-Family Residential District.

2. Rezoning Conditions

Owner agrees that the development of the Property will proceed in accordance with the following conditions which have been offered by Owner as a condition of rezoning the Property:

- a. The Property shall only be used as a two-family dwelling.
- b. Nothing in this Ordinance shall relieve the Owner, or any future owner of the Property, from any obligation to apply for and receive approval of a special use permit or site plan required by the City's Zoning Ordinance.

3. Future Development.

All development of the Property shall be in strict compliance with all applicable City Ordinances, regulations, and applicable building code and utility requirements.

4. Entire Agreement.

This Agreement constitutes the entire understanding between the parties with respect to the subject matter hereof, and all prior or contemporaneous agreements or understandings with respect hereto shall be deemed merged into this Agreement.

5. No Oral Amendment or Modification.

No amendments, waivers or modifications hereof shall be made or deemed to have been made unless in writing and executed by the parties.

6. Amendment of Conditions.

During the time period for commencement of an approved development or use specified pursuant to the Zoning Ordinance or during any extension thereof granted by the City Council, the City shall not add to or alter the conditions in this Agreement. This Agreement may be amended thereafter in the same manner as was prescribed for the original rezoning and the Agreement.

7. Severability.

If any provision of this Agreement shall be declared invalid, illegal, or unenforceable by a court of competent jurisdiction, the remainder of this Agreement shall not be

affected thereby and this Agreement shall be construed as if those provisions were not contained in this Agreement.

8. Applicable Law.

This Agreement shall be interpreted and enforced according to the laws of the State of Michigan.

9. Recordation.

This Agreement will be filed by the City with the Register of Deeds of Wexford County for recording.

10. Violation and Enforcement.

The failure of any party to complain or enforce any act or omission on the part of another party, no matter how long the same may continue, shall not be deemed to be an acquiescence or waiver by such party of any of its rights hereunder. No waiver by any party at any time, express or implied, or any breach of any provision of this Agreement shall be deemed a waiver of a breach of any other provision of this Agreement or a consent to any subsequent breach of the same or any other provision of this Agreement. If any action by any party shall require the consent or approval of another party, such consent or approval of such action shall not be deemed a consent to or approval of any other provision of this Agreement.

11. Violation of Zoning Ordinance.

Any failure by Owner to comply with the terms and conditions of this Agreement constitutes a violation of the City's Zoning Ordinance, a nuisance per se and subjects Owner to the applicable penalties and remedies provided by law, including, but not limited to, immediate injunctive relief. Notwithstanding any other term or condition of this Agreement to the contrary, if Owner, its successors or assigns fails to comply with the use and development conditions of this Agreement or attempts to use or develop the Property contrary to Owner's offered use and development conditions, the Property conditionally rezoned to RM-1, Multiple-Family Residential District will immediately revert to its former zoning classification R-2 One-Family Residential District and any approval of the site plan for the proposed development shall terminate. In such an event, Owner may thereafter develop the Property only in accordance with a site plan that is approved by the Planning Commission and complies with all City zoning, engineering, building and fire codes, as well as Ordinances in effect at that time.

Nothing in this Agreement will relieve Owner from any obligation to apply for and receive approval of a special use permit or site plan required by the City's Zoning Ordinance.

12. Binding Effect; Assignment.

This Agreement runs with the land and binds and inures to the benefit of City and the successors and assigns of Owner.

13. Effective Date.

The conditional rezoning approved by the City Council is effective as provided by law.

14. Time Period for Establishing Development or Use.

The approved development and/or use of the Property authorized by this Agreement must commence within 18 months after the conditional rezoning takes effect and thereafter proceed diligently to completion. Upon written request, this time may be extended by the City Council if (1) it is demonstrated to the City Council's reasonable satisfaction that there is a strong likelihood that the development and/or use will commence within the period of extension and proceed diligently thereafter to completion and (2) the City Council finds that there has not been a change in circumstances that would render the current zoning with the Agreement incompatible with other zones and uses in the surrounding area or otherwise inconsistent with sound zoning policy.

15. Subsequent Rezoning of Land.

If the Property is rezoned to a different zoning classification or to the same zoning classification but with a different or no agreement, whether as a result of a reversion of zoning pursuant to the Zoning Ordinance or otherwise, this Agreement shall cease to be in effect. Upon Owner's written request, the City Clerk will record with the Register of Deeds of the County in which the land is located a notice that the Agreement is no longer in effect.

16. City Right to Rezone.

Nothing in this Agreement, nor in the provisions of the Zoning Ordinance shall be deemed to prohibit the City from rezoning all or any portion of the Property to another zoning classification. Any rezoning shall be conducted in compliance with the Zoning Ordinance and the Zoning Enabling Act (MCL 125.1301 et seq.)

[SIGNATURE BLOCKS ON FOLLOWING PAGE]

IN WITNESS WHEREOF, the parties have caused this Conditional Rezoning Agreement to be executed effective as of the day and year first above written.

City of Cadillac, a Michigan municipal corporation

By: _____
David C. Powell, Mayor

By: _____
Sandra Wasson, City Clerk

STATE OF MICHIGAN)
) ss.
COUNTY OF WEXFORD)

The foregoing instrument was acknowledged before me, a notary public, on the ____ day of _____, _____, by David C. Powell, its Mayor and Sandra Wasson, its Clerk, on behalf of the City of Cadillac.

Notary Public, _____ County, MI
My Commission Expires: _____
Acting in _____ County, MI

Cadillac Living LLC ("Owner")

By: _____
Name: Derek Hamp Its: Agent

STATE OF MICHIGAN)
) ss.
COUNTY OF WEXFORD)

The foregoing instrument was acknowledged before me, a notary public, on the ____ day of _____, _____, by Derek Hamp, agent of Cadillac Living LLC.

Notary Public, _____ County, MI
My Commission Expires: _____
Acting in _____ County, MI

Prepared by/Return to:
Mallory E. Reader
Foster, Swift, Collins & Smith, P.C.
1700 East Beltline NE, Suite 200
Grand Rapids, Michigan 49525
(616) 726-2200

EXHIBIT B

NOTICE OF ADOPTION AND SUMMARY OF ORDINANCE NO. _____

On February 2, 2026, at a meeting of the City Council of the City of Cadillac, Wexford County, Michigan, the City Council adopted Ordinance No. _____, An Ordinance to Amend The Zoning Ordinance To Conditionally Rezone Property. The Ordinance is available for examination at the office of the City Clerk, 200 Lake Street, Cadillac, Michigan 49601, and copies may be provided at a reasonable charge. The Ordinance takes effect 20 days after its adoption. The following is a summary of the Ordinance.

SUMMARY OF ORDINANCE NO. _____

Section 1. Map Amendment. Section 1 of the Ordinance amends the City of Cadillac Zoning Map to change the zoning classification of Parcel No. 10-058-00-036-00 from R-2 to RM-1.

Section 2. Conditional Approval. Section 2 of the Ordinance provides the rezoning is conditionally approved subject to the conditional rezoning approval agreement, which includes that the property may only be used as a two-family dwelling and that the owner is not relieved from any obligations to obtain a special use permit and site plan approval.

Section 3. Severability. Section 3 of the Ordinance provides that if any portion of the proposed ordinance is found invalid for any reason, such holding shall not be construed as affecting the validity of the remaining portions of the Ordinance.

Section 4. Repealer. Section 4 of the Ordinance repeals all ordinances inconsistent with the provisions of the Ordinance, but only to the extent necessary to give the Ordinance full force and effect.

Section 5. Effective Date. Section 5 of the Ordinance gives it effect 20 days after adoption.

CITY COUNCIL OF THE
CITY OF CADILLAC, MICHIGAN

By: Sandra Wasson, City Clerk
Cadillac Municipal Complex
200 Lake Street
Cadillac, Michigan 49601
Telephone No: (231) 775-0181

February 2, 2026

Council Communication

Re: Downtown Sidewalk Café's

Introduction

Clam-Torch RMPL, LLC, DBA Clam Lake Beer Company; Raven BBQ, LLC, DBA Raven Social; Gurden Enterprises, Inc. DBA The HideOut Saloon; and Mi Mezcal Mexican Grill, LLC, have requested approval to place sidewalk cafés in front of their downtown Cadillac restaurants in 2026. Staff has requested and received site plans showing the placement of the tables, chairs, and barriers from the four businesses. The four site plans show the café placement near the building front walls with adequate room for pedestrian traffic meeting the 60 inches of clearance required in the ordinance.

Staff has reviewed and approved the five site plan requests and supports the program subject to the following conditions:

- 1) The Cadillac City Code of Ordinance that relates to sidewalk cafes in Section 46-395 is followed which includes a requirement for a site plan and proof of insurance.
- 2) Businesses with a sidewalk café on Mitchell Street/Business US-131 acquire the needed sidewalk café permit through the State of Michigan.

Requested Council Action

Council is asked to approve the request of Clam-Torch RMPL, LLC, DBA Clam Lake Beer Company; Raven BBQ, LLC, DBA Raven Social; Gurden Enterprises, Inc. DBA The HideOut Saloon; and Mi Mezcal Mexican Grill, LLC, to have sidewalk cafes in front of their businesses in 2026, meeting the two conditions listed above.

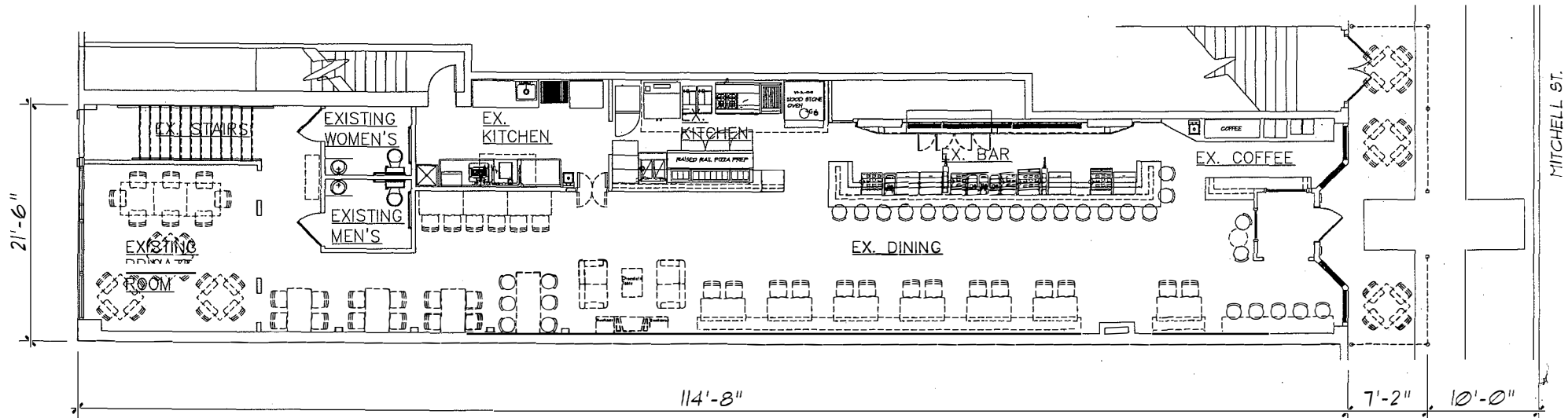
APPROVED

REVIEWED FOR COMPLIANCE WITH
CADILLAC ZONING ORDINANCE

Danielle J. J...
CADILLAC ZONING DEPARTMENT

Clam Lake Beer Co.

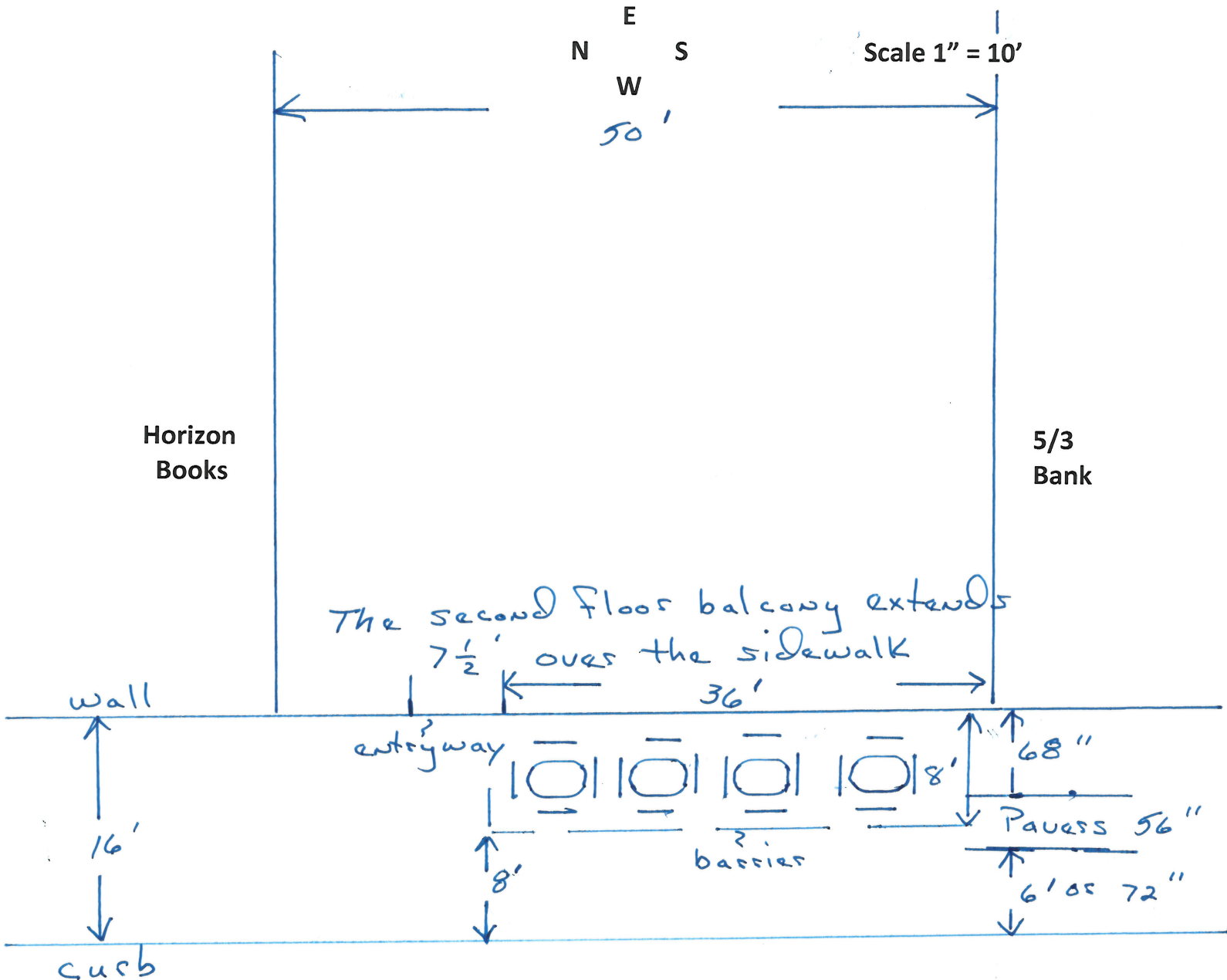
106 S. Mitchell Street



EXISTING
STREET LEVEL FLOOR PLAN
SCALE: NTS

APPROVED
REVIEWED FOR COMPLIANCE WITH
CADILLAC ZONING ORDINANCE
Danielle J. [Signature]
CADILLAC ZONING DEPARTMENT

Raven Brewing & BBQ



119 S. Mitchell St.

2
1
Mitchell Street

Sidewalk

16'2"

6' 8' 19' OUTDOOR seating 8'

THE HIDEOUT SALOON
210 S MITCHELL ST

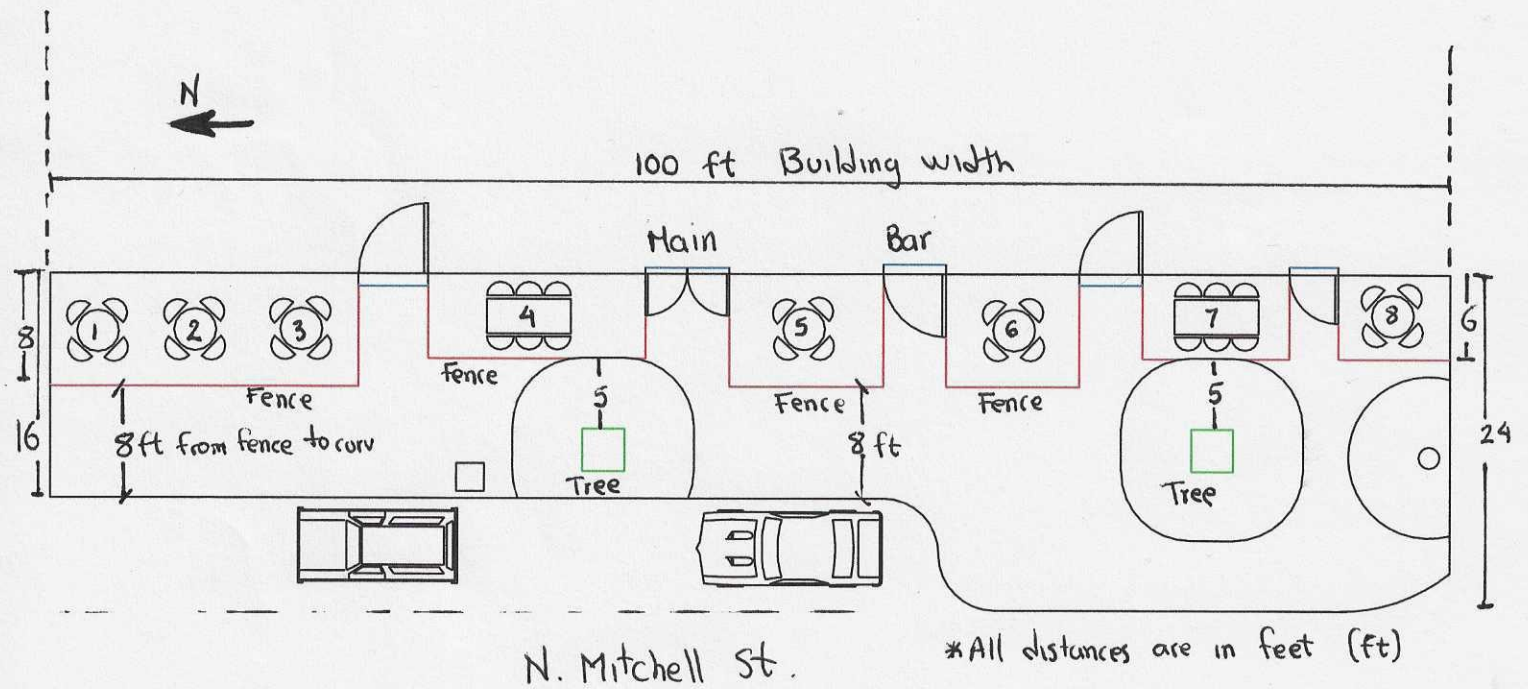
APPROVED

REVIEWED FOR COMPLIANCE WITH
CADILLAC ZONING ORDINANCE

Danielle J. Miller
CADILLAC ZONING DEPARTMENT

25'6"

Mi Mezcal Mexican Grill



APPROVED
REVIEWED FOR COMPLIANCE WITH
CADILLAC ZONING ORDINANCE
Danielle J. [Signature]
CADILLAC ZONING DEPARTMENT

February 2, 2026

COUNCIL COMMUNICATION

Re: Reappointment of Margaret Host to a Three-Year Term on the Planning Commission representing Ward 4.

Margaret Host has expressed her interest in being reappointed to serve as a member on the Planning Commission, representing Ward 4. Margaret has been on the Planning Commission since 2023.

Requested Council Action:

Motion to reappoint Margaret Host to a three-year term on the Planning Commission representing Ward 4, term will end on 3/06/2029.

February 2, 2026

COUNCIL COMMUNICATION

*Re: Reappointment of Brian Warner to a Three-Year Term on the Brownfield
Redevelopment Authority*

Brian Warner has expressed his interest in being reappointed to serve as a member on the Brownfield Redevelopment Authority for a three-year term. Brian has been a member on the board since 2017.

Requested Council Action:

Motion to reappoint Brian Warner to a three-year term on the Brownfield Redevelopment Authority which will end on 3/06/2029.

February 2, 2026

COUNCIL COMMUNICATION

Re: Reappointment of Michelle Carder to a Three-Year Term on the Cadillac Historic Districts Commission

Michelle Carder has expressed interest in continuing her service to the Cadillac Historic District Commission for another three-year term. She was originally appointed in 2017.

Requested Council Action:

Motion to reappoint Michelle Carder to a three-year term on the Cadillac Historic Districts Commission, which will end on 3/20/2029.

February 2, 2026

COUNCIL COMMUNICATION

Re: Reappointment of Chris Huckle to a Four-Year Term on the Downtown Development Authority (DDA)

Chris Huckle has expressed his interest in continuing his service to the Downtown Development Authority (DDA) for another four-year term. He was originally appointed in 2006.

Requested Council Action:

Motion to reappoint Chris Huckle to a four-year term on the Downtown Development Authority (DDA), which will expire on 3/07/2030.

February 2, 2026

COUNCIL COMMUNICATION

Re: Reappointment of Mike Coy to a Four-Year Term on the Election Commission Board.

Mike Coy would like to be reappointed to serve as a member of the Election Commission Board representing Fourth Ward. Mike has served on this board since 2022.

Requested Council Action:

Motion to reappoint Mike Coy to a four-year term on the Election Commission, which will end on 3/07/30.

February 2, 2026

Council Communication

Re: Local Development Finance Authority (LDFA) Bylaws Amendments

The LDFA has been working on several amendments to its bylaws, and by a unanimous vote of the LDFA board recently approved the changes that are detailed in the attachments to this communication.

Attached are the original bylaws and the proposed new bylaws, now referred to as 'Rules'. The original bylaws indicate that the LDFA can propose changes to the bylaws, subject to City Council approval.

Recommended Action

It is recommended that the City Council approved the proposed changes to the LDFA bylaws as presented and as approved unanimously by the LDFA board.

LOCAL DEVELOPMENT FINANCE AUTHORITY
OF THE CITY OF CADILLAC

BYLAWS

ARTICLE I
BOARD OF DIRECTORS

Section 1. The business and property of the authority shall be managed and directed by the board of directors, the members of which shall serve for four (4) year terms from the date of their respective appointment except as provided for in the ordinance creating the authority.

Section 2. The fiscal year of the authority shall begin on July 1 of each year and end on the next succeeding June 30. The board annually at its first year regular meeting in July shall designate one of its members as chairperson and one of its members as vice chairperson. The officers so elected shall serve a term of one (1) year or any part thereof as may be determined, and until a successor is designated. No term of office created under this section shall extend beyond the term of the member designated.

Section 3. The board may employ and fix the compensation of a Director, subject to the approval of the City Council. The Director shall not be a member of the board. The board may employ and fix the compensation of a secretary and treasurer, who need not be members of the board. The Director, secretary and treasurer shall serve at the pleasure of the board for no definite term of office. The board may retain legal counsel to advise the board in the proper performance of its duties. The legal counsel shall represent the authority in actions brought by or against the authority.

Section 4. The board may exercise all powers provided by Act 281, Public Acts of Michigan, 1986, as amended, or otherwise by law including those bestowed by the ordinance establishing the authority.

Section 5. The board shall have the power to engage and employ such manual, clerical, technical, financial and professional assistants as in its judgment may be necessary and is incidental to carry out the purposes of the authority.

Section 6. The board may adopt an official seal.

Section 7. The board shall cause an annual audit of its business to be made and the result thereof shall be submitted to the City Council.

ARTICLE II
MEETINGS

Section 1. Meetings of the board shall be held in accordance with the provisions of the Michigan Open Meetings Act, being Act 267 of the Public Acts of Michigan, 1976, as amended and shall be held in the City of Cadillac, County of Wexford, Michigan.

Section 2. Regular meetings of the board shall be held at 12:00 o'clock p.m., on the first Monday of each month.

Section 3. Special meetings shall be held whenever called by direction of the chairperson, Director, City Manager of the City of Cadillac, or any two (2) members of the board on two (2) days written notice of the time and place of meeting. A waiver of notice in writing signed by a member entitled to such notice, whether before or after the time of the meeting, shall be deemed equivalent to the giving of such notice.

Section 4. Six (6) members of the board shall constitute a quorum. A majority vote of those present shall be necessary for the transaction of any and all business or the passage of any resolution.

Section 5. At meetings of the board, business shall be transacted in such order as from time to time the board may determine.

ARTICLE III OFFICIALS

Section 1. The chairperson shall preside at meetings of the board and shall do and perform such other duties as may be from time to time assigned by the board. The vice chairperson shall perform the duties of the chairperson in the chairperson's absence and such other duties as shall from time to time be assigned by the board.

Section 2. (1) The Director shall be the chief executive officer of the authority. Before entering upon the duties of the office, the Director shall take and subscribe to the constitutional oath, and furnish bond, by posting a bond in the penal sum determined in the ordinance establishing the authority payable to the authority for use and benefit of the authority, approved by the board, and filed with the municipal clerk. The premium on the bond shall be deemed an operating expense of the authority, payable from funds available to the authority for expenses of operation. Subject to the approval of the board, the Director shall supervise, and be responsible for, the preparation of plans and the performance of the functions of the authority in the manner authorized by law. The Director shall attend the meetings of the board, and shall render to the board and to the City Council a regular report covering the activities and financial condition of the authority. If the Director is absent or disabled, the board may designate a qualified person as Acting Director to perform the duties of the office. Before entering upon the duties of the office, the Acting Director shall take and subscribe to the oath, and furnish bond, as required of the Director. The Director shall furnish the board with information or reports governing the operation of the authority as the board may require from time to time.

(2) The Director annually shall prepare and submit for the approval of the board a budget for the operation of the authority for the ensuing fiscal year. The budget shall be prepared in the manner and contain the information required of municipal departments. Before the budget may be adopted by the board, it shall be approved by the City Council. Funds of the City shall not be included in the budget of the authority except those funds authorized by law and by the City Council.

Section 3. The secretary shall maintain custody of the official seal and of records, books, documents, or other papers of the authority not required to be maintained by the treasurer. The secretary shall attend meetings of the board and keep a record of its proceedings, and shall perform such other duties delegated by the board.

Section 4. The treasurer shall keep the financial records of the authority and, together with the Director, shall approve all vouchers for the expenditure of funds of the authority. The treasurer shall perform such other duties as may be delegated by the board and shall furnish bond in an amount as prescribed by the board.

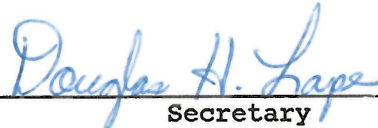
Section 5. All checks shall be signed by the treasurer and countersigned by either the chairperson or the secretary, except as otherwise provided by the board.

ARTICLE IV BYLAWS

Section 1. The board shall have power to make, alter or amend the bylaws in whole or in part, to be effective upon approval of the City Council. Written copies of the proposed changes shall be delivered to the board prior to submission for approval at the next preceding regular or special meeting of the board.

Section 2. These bylaws shall become effective upon approval of the City Council of the City of Cadillac. Until such approval the bylaws shall become temporary bylaws for the authority.

Adopted December 3rd, 1990


Secretary

Approved by the City Council
of the City of Cadillac

on December 17, 1990


City Clerk

LOCAL DEVELOPMENT FINANCE AUTHORITY OF THE CITY OF CADILLAC RULES

ARTICLE I RULES OF THE LOCAL DEVELOPMENT FINANCE AUTHORITY OF THE CITY OF CADILLAC

Section 1. This document shall be known and referred to as the rules of the Local Development Finance Authority of the City of Cadillac (“LDFA”). These rules are the “rules” as that term is used in Part 4 of the Recodified Tax Increment Financing Act, 2018 PA 57, being MCL 125.4401 *et seq* (the “Act”), as amended, and shall supersede and replace in their entirety any prior rules or bylaws of the LDFA.

ARTICLE II PURPOSE AND AUTHORITY

Section 1. The purpose of the LDFA is to eliminate the causes of unemployment, underemployment and joblessness, to promote economic growth in the City, and to stabilize and strengthen the tax base upon which local taxing jurisdictions rely by all means available to state and local units of government, including the use of tax increment financing for the acquisition and construction of public facilities described in the Development Plan that furthers use of the property within the LDFA district by industry and thereby create economic growth and development in the LDFA district and other areas of the City for the benefit of all taxing jurisdictions within the LDFA district.

Section 2. The LDFA, acting through its Board, shall have all the authority granted to it by the Act and by law.

ARTICLE III BOARD MEMBERSHIP

Section 1. The business and property of the LDFA shall be managed and directed by a board of directors (the “Board”). The Board shall consist of 7 members appointed by the Mayor of the City subject to the approval of the City Council, one (1) member shall be appointed by the Wexford County Board of Commissioners, and two (2) members shall be appointed by the Cadillac Area Public School Superintendent.

Section 2. Members shall serve a term of four (4) years. A member shall hold office until the member’s successor is appointed. To the greatest extent possible, an appointment to fill a vacancy shall be made by the officer or entity who appointed the member whose office is vacant within 60 days following the vacancy. The successor member shall serve the remainder of the unexpired term of office. Subject to notice and an opportunity to be heard, a member of the Board may be removed before the expiration of his or term for cause by the City Council. For purposes of this rule, cause shall include, but not be limited to, the absence of a member from (i) four (4) or more consecutive regular and special meetings, or (ii) 25% or more of all regular and special meetings in a calendar year.

Section 3. Members of the board shall serve without compensation but shall be reimbursed for actual and necessary expenses.

ARTICLE IV OFFICERS

Section 1. A chairperson and vice-chairperson shall be elected annually from the members by the Board not later than the first regular meeting of the beginning of the LDFA's fiscal year, which is on July 1. Nominations for chairperson and vice-chairperson may be made by any member of the Board.

Section 2. If a vacancy occurs in either the office of chairperson or vice-chairperson, then members of the Board shall, not later than 60 days following the vacancy, nominate and elect a member to serve the remainder of the term of office.

Section 3. The chairperson shall preside at all meetings of the Board and shall appoint members to any committee, subject to the approval by the Board. If the chairperson is absent or incapacitated, the vice-chairperson shall assume the duties and authority of the chairperson during such absence or incapacitation. If the chairperson resigns or is removed from office, the vice-chairperson shall assume the office of chairperson for the remainder of the term and the Board shall nominate and elect a member of the Board to serve the remainder of the term of vice-chairperson.

ARTICLE V PERSONNEL

Section 1. The Board may employ and fix the compensation of a director, treasurer, secretary, legal counsel, and any other personnel deemed necessary by the Board in accordance with the Act.

Section 2. The duties and obligations of personnel employed by the Board shall be those as set forth in the Act or as directed by the Board.

ARTICLE VI MEETINGS

Section 1. The LDFA shall determine its annual regular meeting schedule, including the time and place for regular meetings, at its first meeting on or following the start of each fiscal year July 1st. Notice of regular meetings shall be published as required by the Open Meetings Act, 1976 PA 267, as amended.

Section 2. Special meetings shall be held whenever called in writing by the chairperson, director, city manager of the City, or any two (2) members of the Board. The request to call a special meeting shall be delivered to the secretary, who shall arrange for notice of the meeting to be posted as required by the Open Meetings Act and shall be delivered personally, by mail, by electronic means (i.e. fax, email or other electronic means) to each member of the Board not less than 18 hours in advance of the special meeting. The notice shall indicate the time and place of the special meeting, together with the purpose of the special meeting. A waiver of notice in writing signed by a member entitled to such notice, whether before or after the time of the meeting, shall be deemed

equivalent to the giving of such notice and actual attendance of any member of the Board at the special meeting shall be deemed a waiver of any required notice.

Section 3. A majority of members of the Board appointed and serving shall constitute a quorum for the transaction of business at any meeting. Vacancies shall not be counted for purposes of determining whether a quorum exists for the transaction of business. Unless otherwise required by law, a simple majority vote of members present at any meeting shall be necessary for the transaction of any business or the passage of any resolution.

ARTICLE VII RULES

Section 1. The Board shall have power to make, alter or amend these rules in whole or in part, to be effective upon approval of the City Council.

Section 2. These rules shall become effective upon approval of the City Council of the City of Cadillac. Until such approval these rules shall become temporary rules for the LDFA.

Section 3. Any rule that conflicts with federal or state law, city ordinance, policy, or regulation is preempted to the extent of the conflict.

February 2, 2026

Council Communication

Re: Clean Water State Revolving Project (CWSRF) Plan and Funding Assistance Proposal

The Cadillac wastewater treatment plant has postponed several needed upgrades and consolidated a number of these projects into one project in the annual Capital Improvement Program. The plan was to pool these needed upgrades into one project, utilizing debt capacity created by upcoming final payments related to two existing debt issues (2026 and 2028) to fund the project. This would enable the department to make significant and much-needed upgrades to the wastewater facilities and equipment.

To maintain the ability to apply for the CWSRF funding, a project plan needs to be developed and submitted to the state by May 1, 2026. Fleis and VandenBrink (F&V) assisted the City in submitting a CWSRF Intent to Apply in October 2025, which positions the City to pursue funding through the Michigan Department of Environment, Great Lakes, and Energy for Fiscal Year 2027. This project plan would be valid for 5 years, so if the City chooses to apply at a later date this document would still be valid.

F&V has submitted a Proposal for Professional Engineering Services to prepare the Clean Water State Revolving Fund Project Plan. The Cost for this service is \$36,800.

Recommended Action:

It is recommended that City Council waive competitive bidding and approve an agreement with Fleis and VandenBrink to prepare a Clean Water State Revolving Project Plan and Funding Assistance for \$36,800. Funds are available in the Water and Sewer Fund.



January 8, 2026

Via Email: utilities@cadillac-mi.net

Mr. Jeffrey Dietlin, Director of Utilities
City of Cadillac
200 N. Lake Street
Cadillac, MI 49601

**RE: Proposal for Professional Engineering Services
City of Cadillac WWTP Improvements
Clean Water State Revolving Fund Project Plan and Funding Assistance**

Dear Mr. Dietlin:

We appreciate the opportunity to partner with the City to evaluate necessary improvements to the City's Wastewater Treatment Plant (WWTP) and prepare the materials needed to pursue subsidized financing through the Clean Water State Revolving Fund (CWSRF) program. This proposal outlines our services in developing a Project Planning Document that supports the City's funding application and defines the recommended project scope.

Fleis & VandenBrink (F&V) assisted the City with submitting a CWSRF Intent to Apply (ITA) in October 2025 and is prepared to proceed with the application requirements. The ITA positions the City to pursue funding through the Michigan Department of Environment, Great Lakes, and Energy (EGLE) for Fiscal Year 2027, with the Project Planning Document due by May 1, 2026.

F&V has supported communities across Michigan with similar planning efforts and funding applications, helping our clients secure more than \$1 billion in subsidized financing and grants. Our team is familiar with CWSRF requirements and the technical and administrative considerations that influence project scoring and eligibility. In addition, CWSRF Project Plans may be used to support applications to other programs, such as USDA Rural Development and the U.S. Economic Development Administration (EDA), if those options are determined to be beneficial.

STATEMENT OF UNDERSTANDING

The City is seeking a comprehensive review of the Wastewater Treatment Plant (WWTP) to identify recommended improvements, evaluate viable alternatives, develop preliminary opinions of probable cost, and prepare the materials needed to pursue subsidized funding.

Based on our recent meetings and correspondence, several key needs at the WWTP have been identified:

- **Headworks:** The existing headworks, constructed in the 1960s, contains aging and inefficient equipment, and the building is in poor condition. The City is interested in a new headworks facility that provides improved grit removal and more effective screening of rags and debris.
- **Aeration System:** Air is supplied to the activated sludge process through multistage centrifugal blowers, which can be energy-intensive and costly to operate. The City would like an evaluation of the existing blowers and an assessment of whether more efficient blower technologies could offer energy or long-term cost savings.

- **UV Disinfection:** The ultraviolet (UV) disinfection system, now 18 to 23 years old, has recurring issues with the pneumatic wiping system, UV intensity meter, and individual bank controls. These components require review to determine appropriate rehabilitation or replacement needs.
- **Solids Handling:** One of the primary clarifiers is currently used as a Waste Activated Sludge (WAS) holding tank, reducing available primary settling capacity. The City would like to evaluate other WAS thickening options to restore clarifier capacity and improve solids handling performance.
- **Biogas Utilization:** The City is interested in expanding the beneficial use of biogas produced through anaerobic digestion, including additional biogas storage and end-use equipment.
- **Site and Facility Improvements:** Several areas of the site require improvements to support safe operations and address aging infrastructure, including:
 - Concrete coatings in the primary clarifiers.
 - Railings around the aeration basins.
 - Building exterior repairs (e.g. roofing, brick façade, etc.).
 - Entrance modifications to the Lab/Administration Building.

The above items will be refined as additional information becomes available. The final scope of the recommended improvements will be identified through review of existing data, field observations, and discussions with WWTP operations staff. Given the comprehensive nature of the anticipated improvements, the City intends to pursue subsidized funding to support implementation.

SCOPE OF SERVICES

We have prepared a Scope of Services and Budget to assist the City in developing and submitting a Project Plan to EGLE to fund selected improvements through the CWSRF program. The major tasks required to complete the Project Plan have been identified based on EGLE guidance documents and are summarized in the attached outline.

In general, the Project Plan will include the following:

- **Project Background:** Summary of population trends, environmental setting, economic characteristics, and existing WWTP conditions to establish the basis for need.
- **Data Analysis:** Evaluation of current infrastructure performance, regulatory compliance status, and projected 20-year capacity and treatment requirements.
- **Alternative Analysis:** Identification and comparison of feasible alternatives, including cost-effectiveness, environmental impacts, implementability, and long-term sustainability.
- **Funding and Scoring Strategy:** Consideration of elements that support EGLE's Project Priority List scoring categories, including water quality benefits, asset management alignment, and disadvantaged community factors.
- **Public Engagement & Submission:** Facilitating the public meeting and submitting the application.

After the Project Plan is submitted, projects are ranked based on the EGLE Project Priority List scoring system that establishes points based on a variety of criteria. Projects are then funded on a points basis until available funds are exhausted. To be considered in this year's funding cycle, a Project Plan that supports the proposed improvements must be completed and submitted to EGLE by May 1, 2026.

Please note that our Scope of Services and Budget do not include costs associated with third-party or agency reviews. If EGLE determines that such reviews are required, we will provide a proposal for the additional services at that time.

We believe our extensive experience with WWTP process design will be valuable to the City. F&V specializes in serving small to medium-sized communities and has the largest wastewater treatment design group based solely in Michigan. Our engineering staff are experienced in developing and implementing practical, innovative solutions, and we will focus on meeting your expectations, delivering quality work, and completing the project in a timely manner.



SCHEDULE

We are prepared to begin work immediately upon authorization. Our schedule is structured to support timely data collection, coordination with City staff, and adequate review time prior to submittal. Based on an Authorization to Proceed date of January 30, 2026, the draft Project Plan will be provided in April 2026, followed by a public meeting in accordance with CWSRF requirements. The final Project Plan will be submitted to the City and EGLE by May 1, 2026, allowing the project to be considered in the current funding cycle.

BUDGET

We propose to provide the Scope of Services outlined above for a lump sum fee of **\$36,800**. This investment will support the City in pursuing low-interest financing and potential principal forgiveness (grants) through the CWSRF program. Planning costs may also be eligible for reimbursement if the project is selected for funding.

Authorization to proceed with these services under the terms and conditions of our existing Professional Services Agreement, executed on August 21, 2013, can be provided by returning a copy of this proposal, signed where indicated below.

We value our relationship with the City of Cadillac and look forward to working with your team throughout this project while contributing to the City's long-term wastewater infrastructure goals. If you have any questions or would like additional information, please feel free to contact me anytime by phone at 517.648.6595 or via email, jbenjamin@fveng.com.

Respectfully Submitted,

FLEIS & VANDENBRINK



Joseph M. Benjamin, PE
Sr. Engineer Manager, Sr. Associate

Enclosures: City of Cadillac CWSRF Project Plan Outline
Existing Professional Services Agreement

CC: Patrick Miller, City of Cadillac – Water Resource Supervisor
Matt Biolette, F&V

AUTHORIZATION TO PROCEED

Fleis & VandenBrink Engineering, Inc. (F&V) is hereby authorized to perform Services as detailed in this proposal under the terms and conditions of our Professional Services Agreement (PSA) executed on August 21, 2013

By: _____
Jeffrey M. Dietlin, Director of Utilities

Date

CITY OF CADILLAC
CLEAN WATER STATE REVOLVING FUND PROJECT PLAN OUTLINE
WWTP IMPROVEMENTS

I Project Background

- A. Study Area Characteristics
 - 1. Delineation of the Study Area
- B. Population Data
- C. Environmental Setting
 - 1. Cultural Resources
 - 2. The Natural Environment
 - 3. Land Use in the Study Area
 - 4. Surface and Ground Waters
- D. Economic Characteristics
- E. Existing Facilities
- F. Need for the Project
 - 1. Water Quality Problems
 - 2. Compliance Status
 - 3. Consent Orders
 - 4. Projected Needs for the Next 20 Years
 - 5. Future Environment Without the Proposed Project

II Analysis of Alternatives

- A. Identification and Evaluation of Potential Alternatives
 - 1. No - Action Alternative
 - 2. Optimize Performance of Existing Facilities
 - 3. Water and Energy Efficiency
 - 4. Regional Alternatives
- B. Analysis of Principal Alternatives
 - 1. The Monetary Evaluation
 - 2. The Environmental Evaluation
 - 3. Technical and Other Considerations
 - 4. Implementability and Public Participation

III Selected Alternative

- A. Description of the Selected Alternative
 - 1. Relevant Design Parameters
 - 2. Project Maps
 - 3. Controlling Factors
 - 4. Sensitive Features
 - 5. Mitigation of Environmental Impacts
 - 6. Schedule for Design and Construction

- 7. Cost Summary
 - 8. Project Delivery Method
- B. Authority to Implement the Selected Alternative
- C. User Costs
- D. Disadvantaged Community
- E. Useful Life

IV Environmental Impacts

- A. Analysis of the Impacts
 - 1. Direct Impacts
 - 2. Indirect Impacts
 - 3. Cumulative Impacts
- B. Description of the Impacts
 - 1. Beneficial and Adverse Impacts
 - 2. Short-Term and Long-Term Impacts
 - 3. Irreversible or Irretrievable Resources

V Mitigation

- A. General
- B. Short-Term Construction-Related Mitigation
- C. Mitigation of Long-Term Impacts
 - 1. General Construction
 - 2. Siting Decisions
 - 3. Operational Impacts
- D. Mitigation of Indirect Impacts
 - 1. Master Plan and Zoning
 - 2. Ordinances
 - 3. Staging of Construction

VI Public Participation

- A. Formal Public Meeting to Review the Project
 - 1. Public Meeting Advertisement
 - 2. Public Meeting Summary
 - 3. Comments Received and Answered
 - 4. Adoption of the Project Plan

PROFESSIONAL SERVICES AGREEMENT

FLEIS & VANDENBRINK ENGINEERING, INC.

3491 Hartman Road, Suite B, Traverse City, Michigan 49685
(231) 932-8600 fax (231) 932-8700

This Professional Services Agreement ("PSA") is entered into between Fleis & VandenBrink Engineering, Inc. ("Engineer") and City of Cadillac, whose address is 200 North Lake Street, Cadillac, Michigan 49601, ("Owner") where Engineer agrees to provide services for Owner and Owner agrees to pay Engineer, all in accordance with the terms of this PSA.

DESCRIPTION OF PROJECT AND SCOPE OF SERVICES: The description of the Project ("Project") and the scope of services ("Services") provided under this PSA is as follows: *Professional Engineering Services as detailed in Engineer's proposal letter dated July 1, 2013, and additional services as specifically authorized.*

AGREEMENT DOCUMENTS: All obligations covered under this PSA are governed by the Agreement Documents, which specifically include this PSA and all of the following documents, which are all incorporated herein by reference: Engineer's proposal letter dated July 1, 2013.

COMPENSATION OF ENGINEER: This contract is an Hourly Fee contract plus 1.1 times reimbursable expenses with an Estimated Fee of \$5,000-10,000. Authorized additional services will be provided on an hourly basis plus 1.1 times reimbursable expenses unless otherwise negotiated.

Owner shall Pay Engineer for all Services and reimbursable expenses on a monthly basis or as otherwise stated herein which shall be due and payable within fifteen (15) days of presentation of the invoice. Invoices shall be past due fifteen (15) days after presentation, and shall then incur interest at the rate of 7% per annum, or the highest rate permitted by law, whichever is lower. Reimbursable expenses include the cost of subconsultants.

PAYMENT. If Owner fails to make any payment when due, Engineer may suspend performance of Services hereunder until all past due amounts and accrued interest are paid. Engineer shall have no liability of any type as a result of suspension of services caused by Owner's failure to pay. The suspension of Services shall not limit any other remedy available to Engineer.

If Owner objects to any portion of an invoice, Owner shall notify Engineer in writing within five (5) days of presentation. Owner shall identify the disputed charges and shall pay when due that portion of the invoice not in dispute. If the disputed amount of the invoice is resolved in Engineer's favor and not paid by the invoice due date, interest as stated in the agreement shall be paid by Owner on the disputed amount from the original due date.

The Owner's Payment of Engineer's invoices shall not be subject to any right of setoff, and payment shall be due regardless of suspension or termination of this Agreement by either party. If any payment obligation is not paid when due, Owner agrees to pay all costs of the collection, including actual attorney's fees through all levels of appeal, whether or not a legal proceeding for collection is commenced as part of the collection process.

OWNER REPRESENTATIVE. The Owner's representative for this Project shall be **Director of Utilities** who shall have complete actual authority on behalf of the Owner and its governing body to make all decisions in connection with the PSA.

OWNER RESPONSIBILITIES. Owner shall timely provide Engineer with all applicable information in its possession and to secure information in the possession of others for Engineer to complete the Scope of Services. Owner shall give Engineer prompt oral and written notice whenever Owner notices, discovers or is made aware of any alleged fault, defect or nonconformance in Engineer's services.

CHANGES. For all services that were completed due to changes to the Description of the Project and/or the Scope of Services, Engineer shall be paid by Owner on an hourly basis at Engineer's customary hourly rates, plus 1.1 times reimbursable expenses, unless otherwise negotiated. If the construction period extends beyond the contracted period in the Scope of Services or the contracted completion date, all services of Engineer thereafter shall continue to be performed and shall be paid by Owner on an hourly basis plus 1.1 times reimbursable expenses. Owner understands and accepts that field techniques and analytical capabilities are evolving and that the standards and regulations are subject to rapid change such that currently acceptable investigative approaches and techniques may become superseded after the time of the signing of this PSA. Such changes will constitute changed conditions requiring adjustment in the Services and Engineer's Compensation.

DELAYS. Engineer shall not be responsible to Owner for any delay of any type or kind unless caused in whole by Engineer.

CONSULTANTS. Engineer may engage Consultants and subcontractors to perform, in its sole discretion, all or any portion of the Services.

COST ESTIMATES. Engineer has no control over the costs of labor and material for construction or over competitive bidding and market conditions. All cost estimates provided by Engineer are based on Engineer's experience and are considered opinions of probable cost. Engineer does not warrant the accuracy of any cost estimate. If project costs exceed the Owner's expectations and the Owner decides to re-design or re-bid any or all portions of the Work, all re-design, re-bid or other services provided by Engineer shall be paid by Owner on an hourly basis at Engineer's customary hourly rates, plus 1.1 times reimbursable expenses.

INDEMNITY. Owner indemnifies, defends and holds harmless Engineer and its agents, consultants and employees, from and against any claim, injury, damage, cost, expense or liability, regardless of the legal theory, including actual attorneys' fees, whether arising before, during or after completion of Services performed under the PSA, caused by, arising out of, resulting from or occurring in connection with the performance of the Services or any activity associated with the Services, whether or not caused in part by the active or passive negligence or other fault of Engineer excepting only injury to person or damage to property caused by the sole negligence of Engineer. In the case of claims against Engineer or any of its consultants, agents or employees by anyone for whose acts Owner may be liable, this indemnification obligation shall not be limited in any way by any limitation on the amount or type of damages, compensation or benefits payable under workers' compensation acts and/or disability benefit acts. This indemnity includes, but is not limited to, any claims resulting from interpretation of or changes to the documents prepared as a result of this PSA. This indemnity survives termination of this PSA.

In addition to the indemnity provided herein by Owner, Owner shall indemnify and hold harmless Engineer and its officers, directors, partners, agents, employees and consultants from and against any and all claims, costs, losses, and damages (including but not limited to all fees and charges of Engineer, architects, attorneys and other professionals, and all court, arbitration, or other dispute resolution costs) caused by, arising out of, relating to or resulting from any and all environmental contamination on the Project.

Engineer, to the extent covered by insurance, indemnifies, defends and holds harmless Owner and its agents and employees, from and against any claim, injury, damage, cost, expense or liability, arising out of or relating to the Services provided by Engineer for the Project, provided that any such claim, cost, loss, or damage is attributable to bodily injury, sickness, disease, or death, or injury to or destruction of tangible property other than the work itself, including the loss of use resulting therefrom, but only to the extent caused solely by any negligent act or omission of Engineer or Engineer's officers, directors, partners, employees or consultants.

To the fullest extent permitted by law, a party's total liability to the other party under the terms and conditions of this PSA including any indemnity, as well as to anyone claiming by, through or under the other party, for any cost, loss, or damages caused in part by the negligence of the party and in part by the negligence of the other party, and any other negligent entity or individual, shall not exceed the percentage share that the party's negligence bears to the total negligence of all of the responsible parties.

PERFORMANCE STANDARDS. In the performance of this PSA, Engineer shall exercise the ordinary standard of care of Engineers in the city, municipality or political subdivision where the Project is located.

LIMITATION OF LIABILITY. Engineer shall not be liable for any claim, damage, cost, expense or other liability not caused by negligent acts, errors or omissions of Engineer. The total liability of Engineer under any legal theory whatsoever, in the aggregate, as well as any claimed liability of Engineer's officers, directors, employees, or agents or consultants, for any claims arising out of the PSA, shall not exceed the fees actually paid by the Owner for the particular Service which forms the basis of the claimed liability.

Engineer makes no warranties, express or implied, with respect to the Services under the PSA, and disclaims any liability for implied warranties of any type or kind, including but not limited to implied warranties of fitness or merchantability, and disclaims any liability for special or consequential damages of any type or kind. Within these limitations, Engineer shall not be liable in any way for errors, omissions or negligence unless caused by the sole and exclusive negligence of Engineer. For all PSAs which involve multiple projects or general consultations, or various services for various projects over a period of time, liability shall not exceed the fee actually paid by the Owner for the particular Services on the specific Project or consultation or assignment which forms the basis of the claimed liability and any statute of limitations shall commence upon the completion of the task giving rise to the claim, not the last unrelated service provided under the PSA for general consultation services. To the extent that Engineer may be found liable under the terms of this paragraph, and only to such extent, Engineer's liability shall not exceed the percentage share of Engineer's responsibility.

INSURANCE. Upon Owner's request, Engineer will furnish Owner with a written statement of insurance coverage. No oral representations regarding insurance shall be binding.

SITE ACCESS. Owner shall be solely responsible for obtaining all site access, easements, and permission from third party property owners for Engineer to access the site to perform the Services herein. Owner is solely responsible for any claims arising from the disturbance of surface or subsurface soil or water conditions caused by the performance of Engineer's Services, excepting damages caused by the sole negligence of Engineer. Engineer will take reasonable precautions to avoid damage to underground structures and utilities. Owner indemnifies Engineer from any damage caused by or to underground structures and utilities not called to Engineer's attention, all in accordance with the indemnity provisions herein. Owner shall provide Engineer with a list of all known hazardous substances on site and a list of protective measures in case of exposure, all in compliance with the current Federal, State and Local Right to Know laws and Federal Hazard Communication Standards.

DRAWINGS, SHOP DRAWINGS AND SUBMITTALS. At all times, and for all purposes, Engineer is the sole and exclusive owner of all drawings and Contract Documents prepared by it and upon completion or termination, all such drawings and Contract Documents shall immediately be returned to Engineer. Engineer shall have no liability of any type or kind to any person for owner's use of any Engineer prepared drawings or Contract Documents following completion or termination. Engineer shall have no liability for erroneous record drawings or electronically manipulated drawings based on information provided by others. If shop drawing or submittal review is part of the Services Engineer provides, Engineer will review the shop drawings and submittals only for conformance with the design concept of the project and compliance with the Contract Documents. Unless specifically indicated in writing, this PSA does not include the preparation of record drawings.

CONSTRUCTION PHASE SERVICES. Unless specifically included in the Scope of Services, there are no construction phase services as part of this PSA and Engineer assumes no liability with regard to construction being in compliance with construction Contract Documents. Owner assumes all responsibility for construction observation and any errors discovered during construction while Engineer is not involved with the Project. If Engineer has no construction phase responsibilities, Owner assumes all responsibilities for document interpretation and, unless specifically indicated to the contrary in writing describing construction observation services and the resultant compensation, Owner waives any claim against Engineer in any way connected to document interpretation or construction observation or the lack thereof. Engineer does not warrant construction quality.

REJECTION OF WORK. In the event that the Scope of Services includes construction phase services in the form of site observation, then Engineer shall have the authority to reject any work which is not, in the judgment of the Engineer, in conformance with the Contract Documents, Plans and Specifications. Neither this authority nor Engineer's good faith judgment to reject or not reject any work shall subject Engineer to any liability or cause of action to any contractor, subcontractor, supplier, or Owner on the Project.

SPREAD OF CONTAMINATION. Owner understands and agrees that Engineer shall not be responsible for any claims or damages which may arise as a result of or from the spread of contamination caused by drilling, sampling or any other activity unless such spread or contamination is substantially caused by the negligence of Engineer. To the extent that Engineer may be found liable under the terms of this Paragraph, and only to such extent, Engineer's liability shall not exceed the percentage share of Engineer's responsibility.

FAILURE TO ENCOUNTER HAZARDOUS MATERIALS. Owner understands that the failure to discover hazardous materials does not guarantee that; (1) hazardous materials do not exist at the project site, and/or (2) that a non-contaminated site may later become contaminated. Although Engineer will use reasonable care and a level of skill ordinarily exercised by members of the profession currently practicing in the city, municipality or political subdivision where the Project is located under similar conditions, Owner agrees that Engineer shall not be responsible for the failure to detect the presence of hazardous materials through techniques and practices commonly used for those purposes.

PERMITS AND APPROVALS. Unless otherwise specifically stated in the Scope of Services, obtaining permits and approvals for the Project is the responsibility of the Owner. For an additional fee, Engineer may assist the Owner provided the assistance shall consist of completing and submitting forms as to the results of certain work included in the Scope of Services and the assistance does not include special studies, special research, attendance at meetings with public authorities, special testing or special documentation not normally required for similar projects. If Engineer participates in any way with any permitting process, Engineer provides no guaranty or warranty that any permits or approvals will be provided. Owner shall pay Engineer for all fees and reimbursable expenses under this PSA regardless of the outcome of approval or denial of permits or other approvals.

ADA AND CODE COMPLIANCE. The Americans with Disabilities Act ("ADA") provides that alterations to a facility must be made in such a manner that, to the maximum extent feasible, the altered portions of the facility are accessible to persons with disabilities. The Owner acknowledges that the requirements of the ADA will be subject to various and possibly contradictory interpretations. To the extent applicable, the Engineer will use its

reasonable professional efforts and judgment to interpret applicable ADA requirements and other federal, state and local laws, rules, codes, ordinances and regulations as they may apply to the Project. The Engineer does not warrant or guarantee that the Project will comply with all interpretations of the ADA requirements and/or the requirements of other federal, state and local codes, rules, laws, ordinances and regulations as they may apply to the Project. Owner shall pay Engineer its customary hourly fees plus 1.1 times reimbursable expenses for any design changes made necessary by newly enacted laws, codes and regulations, or changes to any existing laws, codes or regulations after the date that this PSA is last signed by the parties.

WAIVER. No delay on the part of any party hereto in the exercise of any right or remedy shall operate as a waiver of such right or remedy and a waiver on any one (1) occasion shall not be construed as a bar to or a waiver of any subsequent breach of the same or any other provision of the agreement on a future occasion. No waiver by Engineer of any breach by Owner of a provision of this PSA shall be deemed a waiver of any other provision hereof or of any subsequent breach by Owner of such provision.

ENFORCEABILITY. This agreement shall be binding upon the parties hereto and their respective successors and assigns.

SEVERABILITY. In the event that any one (1) or more provisions contained in the agreement shall be declared invalid, illegal or unenforceable in any respect, the validity, legality and enforceability of the remaining provisions of the agreement shall not be affected or impaired.

OWNERSHIP OF INSTRUMENTS OF SERVICE. Engineer's documents prepared pursuant to this PSA, including those in electronic format, are instruments of service. All reports, plans, specifications, computer files, field data, notes and other documents prepared by Engineer as instruments of service shall remain the property of Engineer. Engineer shall retain all common law, statutory and other reserved rights, including the copyright thereto and all other intellectual property rights. Owner shall not use or permit the use of said documents on any other project. Owner fully indemnifies Engineer against any and all claims for unauthorized use.

TERMINATION: This PSA may be terminated by either party upon seven (7) days written notice. Upon termination, Engineer shall be paid by Owner for all Services performed up to the notice of termination, as well as all costs necessary to demobilize from the site.

DISPUTE RESOLUTION: Claims and disputes arising out of or relating to this PSA involving claims in the aggregate of less than twenty-five thousand dollars, (\$25,000.00) without interest or attorneys fees and without consideration of counterclaims, shall be decided by a court of competent jurisdiction exclusively in Kent County, Michigan. Claims and disputes arising out of or relating to this PSA involving claims in the aggregate of greater than twenty-five thousand dollars (\$25,000.00) shall be decided by arbitration in accordance with the applicable rules of the American Arbitration Association. There shall be a single arbitrator. The award shall be final and binding and enforceable in a court of competent jurisdiction. In either arbitration or litigation, the prevailing party shall be entitled to recover its attorney's fees and costs through all levels of appeal. Jurisdiction, venue and the hearing locale for all arbitrations or litigation shall lie exclusively in Kent County, Michigan.

NO THIRD PARTY BENEFICIARIES. There are no third party beneficiaries to this PSA and the Services provided herein are exclusively for the direct benefit of the Owner indicated above. Owner shall ensure that all other agreements relating to this project reflect that there are no third party beneficiaries to this PSA.

ASSIGNMENT. This is a professional services contract and is non-assignable without the express written consent of Engineer.

MISCELLANEOUS. No additional or contrary terms, whether contained in an order, acknowledgment, or other document from Owner, shall be binding upon Engineer unless agreed to in writing signed by an authorized representative of Engineer, and Engineer expressly rejects all such additional or contrary terms as may be contained in Owner's documents. The terms in this PSA will have precedence over any other terms expressed by the Owner's authorization process such as a purchase order. Engineer's performance is conditioned on Owner's unmodified consent exclusively to this PSA. Engineer shall have the right to correct any errors, whether clerical or mathematical, which are contained in this PSA. Unless otherwise specifically indicated in writing or otherwise required by law and paid for by Owner, there are no Performance or Payment bonds required on this Project. This PSA shall be binding upon and shall inure to the benefit of the parties hereto and their successors and permitted assigns. This PSA shall be governed by the laws of the State of Michigan. This contract sets forth the entire agreement between Engineer and Owner. This is a fully integrated contract.

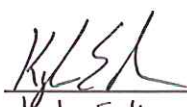
ELECTRONIC/FACSIMILE SIGNATURES. The signatures on this PSA shall be deemed to be original signatures when transmitted electronically or by facsimile machine or by any other medium. No party shall be required to produce a PSA with an original signature in order to enforce any provision of this PSA.

IN WITNESS WHEREOF, the parties hereto have made and entered into this PSA. To be valid, this PSA must be signed by an authorized representative of Fleis & VandenBrink Engineering, Inc.

OWNER
CITY OF CADILLAC

By: 

William Barnett
Title: Mayor

By: 

Kyle Ecker
Title: City Clerk

Date: August 21, 2013

ENGINEER
FLEIS & VANDENBRINK ENGINEERING, INC.

By: 

Brian L. Rice, PE
Title: Principal

By: 

James Brode, CPG
Title: Project Manager

Date: July 2, 2013

February 2, 2026

Council Communication

Re: Community Development Block Grant Public Hearing

The City of Cadillac has been designated \$675,000 in funding through a Community Development Block Grant (CDBG). This CDBG program provides federal funding to support housing rehabilitation activities that primarily benefit low- and moderate-income households. In accordance with federal CDBG requirements, the City must hold a public hearing to receive public input on the proposed use of these funds prior to submission of the grant application.

The proposed \$675,000 CDBG allocation will be used to support a residential rehabilitation program serving approximately forty owner-occupied homes within the community. Of the total grant amount, 18% will be allocated toward administrative costs, as required per the CDBG program guidelines. The remaining funds will be used for housing improvements, including; replacement or repair of approximately fifteen roofs, siding replacement or exterior paint for approximately ten homes and electrical system repairs or upgrades for approximately fifteen homes. These improvements are intended to address health, safety, and code compliance issues, extend the useful life of existing housing stock, and improve overall neighborhood stability.

Recommended Action

Council is asked to set a public hearing for March 2, 2026, to allow for public participation and comment on the proposed CDBG-funded housing rehabilitation program, as required by federal regulations.

February 2, 2026

Council Communication

Re: Hardship (Poverty) Exemption Policy

Public Act 390 states that the governing body of the local assessing unit shall determine and make available to the public, the policy and guidelines the local assessing unit uses for granting hardship (poverty) exemptions. Furthermore, MCL 211.7u requires local units to **annually** adopt a policy, including an asset test used to approve or deny poverty exemptions.

The City of Cadillac has adopted and incorporated the federal poverty guidelines established by US Department of Health & Human Services. The revision to our existing policy establishes the 2025 Health and Human Services Poverty guidelines. The Board of Review utilizes these guidelines when a hardship (poverty) application comes before them.

The Audit of Minimum Assessing Requirements (AMAR) requires the local unit to set an actual dollar amount for assets with the exemption of the primary resident. We have included language in this policy to set the amount of \$50,000 as the asset amount not to exceed, excluding the primary home.

Council Action

Adopt the updated Hardship (Poverty) Exemption Policy utilizing the 2025 Health and Human Services Poverty guideline as well as a \$50,000 asset guideline, excluding the primary home.

POLICY: Hardship (Poverty) Exemption

DATED: January 21, 1997

REVISED: February 16, 1998; March 1, 1999; February 6, 2006; May 7, 2007; December 15, 2008; December 11, 2012; November 18, 2013; March 5, 2018; February 18, 2019; January 21, 2020; January 19, 2021, February 22, 2022, February 6, 2023, February 5, 2024, February 18, 2025, August 18, 2025, February 2, 2026

PURPOSE: Public Act 390 of 1994 was passed by the Michigan legislature and signed by the Governor on December 29, 1994, and said Public Act makes significant changes to the poverty exemption policy found in 211.70 as amended, of the Michigan Compiled laws. Public Act 390 states that the governing body of the local assessing unit shall annually determine and make available to the public, the policy and guidelines the local assessing unit uses for granting hardship (poverty) exemptions. The City of Cadillac develops a hardship exemption policy of real property for persons who, by reason of poverty, are unable to contribute towards the public charges. MCL 211.7u (1)

POLICY: In order to be eligible for a hardship (poverty) exemption, the claimant must establish or comply with all of the following:

1. Be the owner and occupant of property that is his/her principal residence for the year for which the exemption is requested. If requested by the Board of Review, a copy of the deed, land contract, or other evidence of ownership of the property must be provided. MCL 211.7u (2) (a)+(d)
2. Fully complete the Declaration of Poverty Request for tax relief application, including the asset and income schedule.
3. Hardship exemption may be granted up to a maximum of 50 percent.
4. The exemption is also dependent upon the total household income of the applicant meeting the guidelines established by the City of Cadillac.
 - a. Total household income is defined as money, wages, and salaries before deductions; net receipts from non-farm self-employment, business, professional, enterprise, or partnership after deductions; payments from social security, retirement, unemployment compensation, veteran's payments, public assistance; alimony, child support, military family allotments or other regular support from an absent family member or someone not living in the household; private pensions, government pensions, annuity or insurance payments; scholarships, grants, fellowships, assistantships; dividends, interest, rental income, royalties, periodic receipts from estates or trusts, gambling or lottery winnings.
 - b. In compliance with *Ferrero v Walton Township*, 295 Mich App 475: 813 NW2d 368 (2012), when determining "total household income" of the applicant, the City shall not include or consider monies the applicant received from claiming homestead property tax credit.

5. Provide current or preceding year federal and state income tax returns for all persons residing in the principal residence
6. Provide a valid driver's license or other form of identification if requested by the Board of Review. MCL 211.7u (2)(c)
7. Meet the City of Cadillac's income standards for "Poverty Threshold" for the calendar year in question. As its "Poverty Threshold", the City of Cadillac has adopted and incorporated the federal poverty guidelines updated annually in the Federal Register by the United States Department of Health and Human Services. (under authority of Section 673 of subtitle B of Title VI of the Omnibus Budget Reconciliation Act of 1981, Public Law 97-35, 42 USC 9902)

2025 HHS POVERTY GUIDELINES

Persons in Family/Household	Poverty Guideline
1	\$15,650
2	\$21,150
3	\$26,650
4	\$32,150
5	\$37,650
6	\$43,150
7	\$48,650
8	\$54,150

*Families with more than 8 persons, add \$5,500 for each person.

8. Even if the income guidelines are met, assets shall not exceed \$50,000 with the exception of the Primary home.
9. This policy applies only to individuals and is not for other types of ownerships such as corporations, limited liability companies, partnerships, associations, and co-owners (the only exception being the individual owner of a life estate).
10. Only the assessed value of the principal residence of an owner of a life estate shall apply, but the incomes of the owner of a life estate and income of all interested persons and household members shall be combined for determination of the poverty threshold. The owner of the life estate must reside and use the property as his or her principal residence.
11. Any tax exemption given to an individual under these guidelines shall be for the one (1) year's taxes. A new application will be required each year an exemption is requested.
12. During the deliberation process, the Board of Review must remain totally objective and ensure that their decisions is in no way arbitrary. The Board of Review must follow this hardship exemption policy and the guidelines set forth within.
13. The City Assessor and the Board of Review shall notify, in writing, all applicants whose application for exemption is being denied. The applicant may appeal the decision by applying to the Michigan Tax Tribunal and filing the appeal in writing prior to June 30th for a March Board of Review action. For July and December

Board of Review actions the appeal must be filed with the Tax Tribunal within 30 days of receipt of your answer from the Board of Review. The address is Michigan Tax Tribunal, 611 West Ottawa, PO Box 30232, Lansing, Michigan 48909.

14. The assessor will act as an advisor for the Board of Review. The Board of Review will have the final determination for a hardship exemption. A person who files a claim is not prohibited from also appealing the assessment on the property for which that claim is made before the Board of Review in the same year.
MCL211.7u (6).
15. The application filing for an exemption under this policy shall be filed after January 1, but before the day prior to the last day of the Board of Review.
MCL 211.7U (3)



Charitable Gaming Division
Box 30023, Lansing, MI 48909
OVERNIGHT DELIVERY:
101 E. Hillsdale, Lansing MI 48933
(517) 335-5780
www.michigan.gov/cg

LOCAL GOVERNING BODY RESOLUTION FOR CHARITABLE GAMING LICENSES

(Required by MCL.432.103a(i)(ii))

At a _____ meeting of the _____
REGULAR OR SPECIAL TOWNSHIP, CITY, OR VILLAGE COUNCIL/BOARD

called to order by _____ on _____
DATE

at _____ a.m./p.m. the following resolution was offered:
TIME

Moved by _____ and supported by _____

that the request from _____ of _____,
NAME OF ORGANIZATION CITY

county of _____, asking that they be recognized as a
COUNTY NAME

nonprofit organization operating in the community for the purpose of obtaining charitable

gaming licenses, be considered for _____.
APPROVAL/DISAPPROVAL

APPROVAL

Yeas: _____

Nays: _____

Absent: _____

DISAPPROVAL

Yeas: _____

Nays: _____

Absent: _____

I hereby certify that the foregoing is a true and complete copy of a resolution offered and

adopted by the _____ at a _____
TOWNSHIP, CITY, OR VILLAGE COUNCIL/BOARD REGULAR OR SPECIAL

meeting held on _____
DATE

SIGNED: _____
TOWNSHIP, CITY, OR VILLAGE CLERK

PRINTED NAME AND TITLE

ADDRESS

COMPLETION: Required.
PENALTY: Possible denial of application.

BSL-CG-1153(R4/24)



Planning Commission
December 22, 2025, Meeting Minutes

Call to Order

Meeting was called to order at 6:00PM

Roll Call

Planning Commission members present: Host, Rice, Bunce, Baumann, Van Pelt, Putvin

Planning Commission members absent: Schippers, Bosscher, Fent

Staff: Waldo, Timmer, and Mallory Reeder with Foster Swift

Approval of Agenda for December 22, 2025

A. Motion to approve December 22, 2025, agenda with the removal of 4A by Baumann. Supported by Bunce.

a. Motion approved unanimously.

Approval of November 24, 2025, Meeting Minutes

A. Motion to approve November 24, 2025, minutes by Host. Supported by Baumann.

a. Motion approved unanimously.

Public Hearings

A. Application filed by Derek Hamp requesting conditional rezoning of 620 Arthur Street from R-2 to RM-1 on the condition that the subject property be used only as a single-family or a two-family home.

a. Waldo gave a detailed presentation regarding the conditional rezoning request for 620 Arthur St.

b. Applicants, Derek and Emily Hamp, addressed the board giving a presentation. The Hamps showed photos of a home on Alexander St they renovated, explaining that the home sat vacant for quite some time. Hamp stated that they plan to renovate 620 Arthur St similarly but believe that this property is better suited for a two-family home. Hamp explained the blighted condition of 620 Arthur St. The Hamps stated they have received support in writing from the neighbors for the rezoning to allow for a two-unit home. The Hamps stated that they hope to have the renovations completed within the next year.

c. Putvin opened the public hearing. There being no comment, Putvin closed the public hearing.

d. Board discussion took place regarding the conditional rezoning request.

e. Baumann asked if there were any legal limitations regarding the rezoning request that should be considered on the record. Mallory Reader, attorney with Foster Swift, stated that the applicant has asked that the conditions be applied to the rezoning. Conditions cannot be set by staff or the Planning Commission

i. Motion by Baumann to recommend approval to City Council the conditional rezoning of 620 Arthur St, from R-2 to RM-1 contingent on the properties exclusive use as a single family or two-family home. Supported by VanPelt. Motion approved unanimously on a roll call vote.

New Business

None.

Old Business

None.

Communications

A. Zoning Code Rewrite Update

- a. Waldo provided an update on the zoning rewrite. Waldo reminded the board to take the survey and stated that there have been 114 respondents so far. Waldo stated that there will be an advisory meeting and educational session in February and dates will be provided soon.

Public Comment

None.

Adjourn at 6:28 PM



MEETING MINUTES
Cadillac Zoning Board of Appeals (ZBA)
5:30 P.M.
December 18, 2025

CONVENE MEETING

Chairperson Nichols called to order a meeting of the Cadillac Zoning Board of Appeals at 5:30 p.m. on December 18, 2025.

ROLL CALL

MEMBERS PRESENT: Coy, Nichols, Ault, Hutchinson, Host

MEMBERS ABSENT: Bontrager, Brown

STAFF PRESENT: Waldo, Timmer, and Mallory Reader (City Attorney, FosterSwift, attended remotely)

APPROVAL OF MEETING AGENDA

Motion by Host to approve December 18, 2025, meeting agenda. Supported by Hutchinson. The motion was unanimously approved on a roll call vote.

APPROVE OF OCTOBER 16, 2025, MEETING MINUTES

Motion by Hutchinson to approve November 20, 2025, meeting minutes to include the amendments she provided. Supported by Coy. The motion was unanimously approved on a roll call vote.

PUBLIC COMMENT

None.

COMMUNICATIONS

Zoning Code Rewrite. Waldo stated that she has a few sections of the ordinance that she would like to boards feedback on. Waldo stated that she will hand the sections out at the end of the meeting.

PUBLIC HEARING AND BOARD ACTION

Variance application filed by Midway Signs, on behalf of Bry-Lex Cadillac LLC owner of 903 N Mitchell St, requesting a sign setback variance of 6 ft.

Waldo gave a detailed presentation regarding the variance request.

Nichols opened the public hearing.

Jason Letzkus, applicant and owner of Midway signs addressed the board. Letzkus stated that the submitted site plan details the sign in the requested area. Letzkus cited the parking lot difficulties and stated that there is no other location on site that would accommodate the signage or have the ability for the signage to be effective. Letzkus explained the effectiveness of this sign when it comes to customer awareness, traffic safety and emergency response. Letzkus references the photos supplied in the application and stated his opinion of this sign not interfering with line of sight.

Nicholas closed the public hearing.

Board discussion took place on the request and the height of the sign. Hutchinson asked for clarification on the setback variance request. Letzkus stated that he would like the sign to be placed four feet from the sidewalk. Letzkus stated that while six feet he could make do with, he would prefer four due to snow removal and parking lot clearance concerns.

Coy stated that in June of 2024 the Planning Commission approved the site plan with the sign in this location. Coy stated he sees a practical difficulty due to the Planning Commission approving the site plan previously. Coy stated that he believes the ZBA does not have the authority to reverse the decision of the Planning Commission. Coy stated there should be conditions provided with the variance: ability for staff to make minor adjustments to alleviate the need for the applicant to have to come back to the ZBA, the sign placement should be closer to the building side curb due to sight line, bollards could be installed to ensure security of the sign.

Board discussion took place on Planning Commissions approval of the site plan. Coy explained the departmental reviews that took place in order for the site plan to make its way to the Planning Commission.

Hutchinson cited the standards of granting a sign variance as stated in Section 46-664(j)(3)a-j.

- a. Variances may be granted only when it can be clearly demonstrated that hardship or practical difficulty will in fact exist if the variance is not granted.
 - The board agreed that there is a clear practical difficulty, Planning Commission approval has already been granted.
- b. The mere fact that other larger signs constructed under prior sign ordinances do exist in the area shall not be sufficient reason to declare hardship nor practical difficulty.
 - The board agreed this is not the reason of hardship nor practical difficulty.
- c. In no case shall a variance be granted if it is determined by the board of appeals that the appellant has created the hardship or practical difficulty.
 - The board agreed that the applicant has not created the hardship or practical difficulty.
- d. Before a variance is granted, it must be shown that the alleged hardships or particular peculiar difficulties of the person requesting the variance result from conditions which do not exist generally throughout the city.
 - The board agreed that the particular peculiar difficulty does not generally exist throughout the city.

- e. The applicant for a variance shall be prepared to furnish a site drawing, photographs, and/or any other means of proof to the board of appeals to so indicate that hardship or practical difficulty does in fact exist.
 - The board agreed that these details have been provided.
- f. The term "hardship" shall not be deemed financial hardship relating to the cost of the sign or the size of the sign or to the fact that the sign has already been constructed, or the fact that the sign is only available in standardized sizes and/or materials. Example: franchised business signs.
 - The board agreed this is not the reason of hardship nor practical difficulty.
- g. The alleged hardships and practical difficulties, or both, which will result from a failure to grant the variance must include substantially more than mere inconvenience, or mere inability to attain a higher financial return.
 - The board agreed this is not the reason of hardship nor practical difficulty.
- h. It must be shown that allowing the variance will result in substantial justice being done, considering the public benefits intended to be secured by this section, the individual hardships that will be suffered by a failure of the board to grant a variance, and especially the rights of others whose property would be affected by the allowance of the variance.
 - The board agreed that this will be achieved.
- i. The above findings of fact shall be made by the board of appeals, which is not empowered to grant a variance without finding of fact in each of the categories above. Every finding of fact shall be supported in the record of the proceedings of the board.
 - The board agreed that all finding of facts have been considered and stated.
- j. Nothing contained herein shall be construed to empower the board of appeals to change the terms of this section or to add to the types of signs permitted on any premises.
 - The board agreed that no changes have been made.

Coy commented that the green space provided in the site plan is exceptional. Hutchinson commented that green space has been brought up in previous variance requests as a condition to remain in tack.

Motion by Coy to approve of the variance request for 903 N Mitchell St, based on the finding of facts as stated on the record and the practical difficulty being that the site plan has been previously approved by the Planning Commission in June of 2024 with no appeals presented. This approval comes with the following conditions: the west side of the sign must be placed 1.5 feet from the curb, which would allow for a 4-6ft setback, with the ability for staff to make final approval and minor adjustments. Supported by Hutchinson. The motion was unanimously approved on a roll call vote.

NEW BUSINESS

None.

OLD BUSINESS

None.

BOARD MEMBER COMMENTS

Hutchinson asked about the date of the Joint Planning and Development meeting. Waldo stated that the meeting will be held at the regularly scheduled Planning Commission meeting which takes place on January 26th at 6:00pm.

PUBLIC COMMENTS

None.

ADJOURN

There being no further business, 6:13pm.